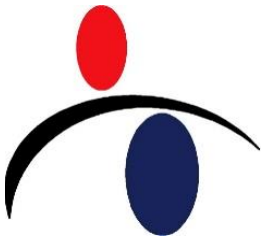
Sworn Translation

in

South Africa

Second Edition – 2020

Produced and published by the South African Translators' Institute



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The purpose of this sworn translation manual is to assist those who wish to become sworn translators in South Africa. The manual elaborates on the expertise and mastery needed to work as a sworn translator and also includes specific applications and requirements. It is filled with descriptions and examples which will assist those who are learning the ropes to become well-rounded in this specialised profession.

Using the first manual that was compiled by Marion Boers with the help of Gillian de Jager as a basis, we went back to the drawing board. With assistance, feedback and practical examples from seasoned sworn translators, a new copy was born. I wish to thank Erica du Preez, Gillian de Jager, Tracey Babb, Wilna Liebenberg, Marta Behar and Laurent Chauvet for their time, effort and expertise. Furthermore, I wish to thank in particular Beverley Boland for her copy-editing work and Hester Wiseman for the format and layout of this edition. I truly appreciate your hard work and dedication. May this new copy serve its purpose.

Theresa Bender (SATI Executive Director)
Bloemfontein
May 2020

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Sworn Translation

WHAT IS A SWORN TRANSLATION?

In South Africa a sworn translation is an officially accepted translation done by someone who has been admitted and enrolled as a sworn translator in the High Court of South Africa. In other countries, the process of becoming sworn (also known as 'certified' in some countries) differs.

The sworn translator's name must appear in the register of sworn translators. Only sworn translators who have taken the oath in a court of law under penalty of perjury can issue sworn translations.

A sworn translation is the *legal equivalent* of the source document. It is issued in hard copy and each page must contain the original signature, statement of certification (by means of a footer or stamp) and stamp of the sworn translator. It is often accompanied by the sworn translator's cover letter. The sworn translation must comply with the legal requirements of the recipient country.

Clients may use the term 'official translation' or 'certified translation'.

Having a translation stamped at the police station or by a commissioner of oaths, lawyer or notary, does not render it sworn, neither is it sufficient for the translator to be accredited with the South African Translators' Institute (SATI).

WHEN IS A SWORN TRANSLATION REQUIRED?

A sworn translation is required when a document is in a language other than a language understood and accepted by an institution or recipient country.

Sworn translations are generally required for documents to be used in a court of law, for emigration/immigration purposes, in the administration of estates, for powers of attorney, in commercial law, for registration of companies, in the import/export industry and, in general, in any public or private office where a legally accepted translation is required.

WHERE ARE SWORN TRANSLATIONS ACCEPTED?

Sworn translations are generally accepted everywhere in the world. However, some regions will only accept sworn translations that are issued by a translator who is a resident of the recipient region or country. It is advisable if you are working into a foreign language to acquaint yourself with the regulations in the recipient country.

Some countries accept the sworn translation on its own, while other countries may have additional requirements, such as an **Apostille** or a **Certificate of Authentication**.

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List of typical documents

Academic records	Affidavits
Adoption orders	Articles of association
Antenuptial contracts	Constitutions
Apprenticeship contracts	Court transcripts
Bank statements	Forensic reports
Birth & marriage certificates	Financial statements
Certificates of registration	Lease agreements
Contracts	Legal documents
Degree & diploma certificates	Legislation
Divorce orders	Medical records
Patents	Module outcomes
School reports	Payslips
Senior certificates	Testimonials
Settlement agreements	Title deeds
Testimonials	Trust deeds
Trade tests & certificates	WhatsApp messages
Witness statements	Wills

SWORN TRANSLATION VERSUS LEGAL TRANSLATION

Sworn translation

- A sworn translation bears the signature and stamp of a sworn translator who has been authorised by the high court to translate official documents.
- These translations have the same legal status as the original source document and are accepted by the Competent Authorities of other countries.
- When a sworn translator signs and stamps a document they are certifying that the document is a true version of the original.
- *This signature carries a legal responsibility between the translator and the document.*

Legal translation

- Legal translation is merely a specialised branch of translation.
- A legal translator is someone with extensive knowledge and experience in the translation of legal, administrative and judicial texts.
- Importantly, a legal translator (even a lawyer) is not necessarily authorised to do sworn translations.
- *Unless a legal translation is certified by a sworn translator, the translation will have no legal status.*

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WHAT IS A SWORN TRANSLATOR?

A sworn translator is a person who is *admitted and enrolled* by any division of the high court as a sworn translator between any two or more specified official languages of the Republic of South Africa, or between any specified official language of the Republic of South Africa and any specified foreign language, upon satisfying the court of their competency.

Upon admission, a sworn translator receives a unique registration number (case number), obtains the right to use a sworn translator stamp, and becomes an *ex officio* commissioner of oaths.

"By virtue of one's office."

With a sworn translation, the sworn translator assumes liability for the correctness of the translation.

PROFESSIONAL ACTIVITIES OF A SWORN TRANSLATOR

Issuing of a sworn translation entails –

- translating the original source document into the target language;
- attesting to having scrutinised the original source document;
- certifying the authenticity of a copy of the source document or certifying the authenticity of a printout of the source document obtained from a computer network database, if necessary; and
- signing the translation and affixing the sworn translator's stamp to the translation.

In some countries a sworn translation may be prepared in digital format, in which case the digital signature of a sworn translator would replace the sworn translator's signature and stamp. However, there is currently no clear guideline on digital format in South Africa.

KEY CHARACTERISTICS OF A SWORN TRANSLATOR

Sworn translators strive to display the best characteristics of a good translator:

- A true understanding of translation. They are highly reflective about the culture and the meaning behind the words that they are using. A simple word that is not accurately translated can have a detrimental effect on everyone involved.
- A high regard for their professional responsibilities, which they never take lightly

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- Professional attitude and conduct

- An awareness of their limits and capabilities, both personal and professional, which they communicate without hesitation

- Research skills

- Pedantic attention to detail

- Honesty and integrity

In addition, they have a sound knowledge of the legal systems of the countries in which the other languages in which they work are used, or know where to obtain such information.

WHO MAY BECOME A SWORN TRANSLATOR?

Anyone who has complied with the relevant requirements may become a sworn translator, including anyone who is not a South African citizen. They must be able to appear in person in the High Court of South Africa for the admission process.

One is sworn for a particular language combination only. Someone who is an Afrikaans-English sworn translator is not necessarily also an English-Afrikaans sworn translator, unless they have been tested separately for each language combination.

A translator who has been sworn in South Africa may not necessarily work as a sworn translator in another country – local regulations apply. Contact the South African embassy in the foreign country in this regard.

Please note:

- When you change address within the same jurisdiction as where you were sworn in, you must notify the registrar of your change of address.
- If you move out of your jurisdiction, you must apply for admission at the high court in the new jurisdiction.
- Although you are able to work from anywhere in South Africa, Apostilles and Certificates of Authentication can only be issued by the high court where you were admitted.

SWORN TRANSLATOR VERSUS SWORN INTERPRETER

A sworn translator –

- has the relevant qualifications and has passed the examination;

- once sworn in, remains sworn for as long as they are competent to provide the quality of translation required by the court; and

- becomes an *ex officio* commissioner of oaths.

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A sworn interpreter –

- may be sworn in if the court is satisfied with their competence and integrity;
- is appointed ad hoc for the purposes of a particular court case being heard (unless permanently employed as a sworn interpreter by the Department of Justice); and
- does not become an *ex officio* commissioner of oaths.

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HOW TO BECOME A SWORN TRANSLATOR

Procedure

There are two ways to become a sworn translator:

1. Through the accreditation system of the South African Translators' Institute (SATI).

2. Examination by a sworn translator of at least seven years' standing in the relevant language combination. If the testing is done by a private examiner, be sure to use the correct certificate for the court admission process.
   (See page 38 for Certificate in terms of Rule 59(2).)

It is important to note the following:

- The examination set by the sworn translator in option 2 above is not regulated; therefore, the standard differs widely, as do the fees charged for this service.

- With option 2, you will not have SATI accreditation, which is sometimes a client requirement.

- Within the South African system it is not possible for prospective sworn translators wishing to become sworn in a particular language combination for which no sworn translators yet exist, since there is no one to set the examination.

- Whether you write an examination set by SATI or by another sworn translator, the procedure for being admitted to the high court is the same.

- The Language Practitioners Council Act 8 of 2014 states that only "the Council may regulate, register or accredit a language practitioner". This will only come into effect once the Language Practitioners' Council has been established. Until then, SATI continues to accredit members, including for sworn translation.

Experience

In order to work as a sworn translator, you should have a translation qualification. This is a specialised field and requires a high level of linguistic expertise. You should also have at least a basic understanding of the legal systems of the countries in which languages you will be working.

It is imperative to have at least one specialist legal bilingual dictionary for the languages in which you will be working, as well as the general bilingual and specialist monolingual dictionaries you normally use.

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PROCEDURE FOR BECOMING A SWORN TRANSLATOR THROUGH SATI

1. Become a member of SATI
2. Qualification
3. Practice test and examination
4. Admission to the High Court of South Africa
5. Stamps
6. Get started!

1. Become a member of SATI

Once you have been a paid-up member for three months, you can apply for accreditation.

2. Qualification

- You have to write the sworn translation accreditation practice test. If you pass it, you will be allowed to apply for the sworn translation accreditation examination as soon as you are ready. If you fail, you will only be allowed to apply for the examination after a waiting period determined by the accreditation office.

- In order to qualify to write the test, you must meet the criteria set by SATI:

  - You should have a higher education qualification in languages or linguistics, plus at least 3 years' experience as a translator, as well as a sound knowledge of legal documents and legal terminology.

  - If you do not have a language-related higher education qualification, you must have at least 5 years' experience as a translator, as well as a sound knowledge of legal documents and legal terminology.

  - You are required to purchase a copy of the SATI manual on sworn translation and study it before writing the practice test.

3. Practice test and examination

- For detailed information on how to apply for and prepare for SATI accreditation, contact the accreditation officer at exams@translators.org.za or visit the 'Accreditation' page on the SATI website (https://www.translators.org.za), specifically 'Accreditation in Sworn Translation'. You must view the relevant PowerPoint presentation on that page before writing the test.

- Fees are payable when applying for both the test and the examination. The fees are determined annually by the Institute.

- All texts in both the test and the examination should be regarded as original documents, unless they display a certification stamp, in which case they should be regarded as certified copies.

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- You may use any resources available to you, such as dictionaries, the internet, reference books and glossaries. You may not consult another person, whether directly or indirectly via email, electronic discussions or chat groups.

- You must sign and stamp each page of your examination script as if you were already a sworn translator. You do not have to have a stamp made – simply design a reasonable facsimile in advance of receiving the examination. (Use a text box for this purpose.)

- The practice test consists of one text to be translated. It will be sent to you electronically. There is no time limit for writing it, but your script must be returned within three months. It will be assessed by one marker, who will mark it anonymously. You will receive your marked script, as well as comments from the marker.

- Once you have completed the practice test and applied to write the examination, you have to sign an affidavit before a commissioner of oaths stating that you will abide by the examination rules.

- The examination will be sent to you electronically as a password-protected document on an agreed-upon date. You will have 24 hours to write the examination and return it to the accreditation officer electronically. If you do not return the script within this time limit, your examination will be nullified.

- Your script will be sent to two examiners, who will mark it independently and anonymously. If the examiners' results differ, the script will be submitted to a third examiner, whose decision is final.

- The marking system is explained in detail on the SATI website (see the PowerPoint file at https://www.translators.org.za/accreditation-in-sworn-translation).

- Once you have written and passed the accreditation examination in sworn translation, you will receive a certificate from SATI attesting to your competence, in addition to your accreditation certificate. Note: At this point, you are **not yet** a sworn translator.

- SATI merely provides the accreditation. The high court is responsible for the admission process, after which they will issue you with a professional certificate of admission as sworn translator.

4. Admission to the High Court of South Africa

- After you pass the accreditation examination and receive the SATI certificate, you must approach the registrar of the high court in your jurisdiction to apply for admission. The registrar will explain the process to you – what to do and which forms to submit.

- On the day of your appearance in court (you can choose to appear with or without counsel), you will take the oath, be sworn in and admitted.

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- Within 7 to 10 days you should be able to collect your Certificate of Admission as a sworn translator from the registrar's office.

5. Stamps

Once you have your Certificate of Admission, you may design and order your own rubber stamps indicating that you are a sworn translator and a commissioner of oaths. (See 'Stamps and Certification' on p13.)

6. Get started!

As soon as you have your stamps, you can start working. (See "Getting Yourself Known" on p36 for tips.)

Always remember that there is no better advertisement than word of mouth –
if you produce high-quality work, word will spread and you will quickly reap the benefits.

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HIGH COURT ADMISSION PROCESS

Documents required for court appearance

Certificate in terms of Rule 59(2)

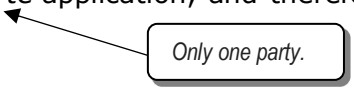
To be used if you were examined by another sworn translator of at least seven years' standing. Not required for examination through SATI.

Index

Page numbering is explained in the "Format and layout" paragraph below.

Notice of set-down

A notice of set-down is not required for an *ex parte* application, and therefore not necessary for the admission of a sworn translator.



Notice of motion

To inform the court what you require from the court: in this instance, to be admitted as a sworn translator in a particular language combination. You should also state that a copy of your SATI accreditation certificate is attached.

Affidavit

Stating who you are, where you live, and that you have passed the relevant examination (including the details of your language combination.) This affidavit must be signed before a commissioner of oaths.

Certificate

Your SATI accreditation certificate must be marked EXHIBIT A and must have a page number.

Statement

To be signed in front of the judge. It states your proficiency in the particular language combination and that you promise to translate faithfully and correctly, to the best of your knowledge and ability.

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Format and layout of the above documents

- Wide margins, no more than 30 lines per page, double spacing, **Arial 12.**

Top:	3.00 cm	Bottom:	2.54 cm
Left:	4.00 cm	Right:	2.54 cm

This layout is standard for all court documents.

- Widow/orphan control must be off.

Home
Paragraph
Line & Page breaks
Widow/Orphan control

- Number the pages in the top right-hand corner.
- The numbering must continue from one document to the next. Do not restart numbering on a new document.
- Affidavit — paragraph numbering must be centred, except the prayer which must be numbered on left-hand side.

Court roll

- Enquire at the general office at the high court about when the roll closes if you would like to go to court on a specific date — do this about a month in advance. Motion court sits daily.
  - If you have no specific date preference, just go to court and ask for the first available date. Keep in mind what needs to be done before that date and ensure that you have enough time (see below).
  - Roll closes two days before the court date.
- Obtain a court date and your case number.

Make a note of your case number! Everything revolves around it.

- Complete the forms with the relevant case number and dates.
- Hand in **two sets of documents**, stapled in the correct order, at the general office. Make a third copy for yourself.

There are often two judges presiding, in which case each one needs a set.

- Enquire at the general office when the file will be ready for collection.
- Collect the file when ready and take it to the **motion court office**, no later than two days before the court date. If you fail to do this, your name will not appear on the roll.

Dress code

Dress like an advocate or attorney – i.e. formal, mainly black and white. Men should wear a tie.

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Court day

If you have a representative

Your representative will give you instructions as to where to go and what to do.

If you are appearing in person ← *Meaning without a representative.*

- Be at court an hour before court begins.
- Find the court roll to see which court you must go to and take note of your number on the list.
- Find your court and speak to the judge's clerk. ← *Usually sitting opposite the operator doing the recording.*
  - Find out from the clerk where to stand and which microphone to use when it is your turn.
  - The court orderly may call you by your case number or your name, or the court may simply follow the court roll without your name being called. This is why it is very important to know where you appear on the list.
  - Take the original **SATI accreditation certificate** with you. If the judge asks for it and you cannot produce it, he may refuse to admit you.
  - Sit on the aisle – this makes it easier to get up and go forward when it is your turn.
  - Follow the proceedings attentively.

When you are called to the stand

- Prepare a short address (speech) before you go to court – this is to inform the court of why you are there.
- Address the court (judge) as M'Lord or M'Lady and refer to them as Your Lordship or Your Ladyship.
- Start your address with, *May it please the court, M'Lord (or M'Lady).* If there are two judges presiding, address both of them in your opening address. Thereafter, you can address only the one speaking to you.
- Your address must contain all of the following information:
  - That you are bringing an application to the court to be admitted as a sworn translator to the High Court of SA,
  - That the relevant documents have properly been filed before the court,
  - That you have the **original accreditation certificate** with you.

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- Conclude your address by saying, *As the court pleases*. Keep it short. The judge will ask if he needs more information.

Certificate of Admission

- Your Certificate of Admission should be available for collection from the general office/registrar approximately 7 to 10 days after the court date.

- Upon collection, check the details on the certificate – check for spelling, typing errors and discrepancies. Have them rectified, if necessary.

- Remember your case number for collection.

If the above seems a bit overwhelming, get yourself an advocate – unlike us, they know exactly what to do!!

Stamps and certification

You are now entitled to have your rubber stamps made. The colour, size and design are your own choice, but the following should appear on your stamp:

Sworn stamp

- Your full names
- Sworn Translator RSA
- Division of the high court
- Your registration number
- The words "*Ex Officio* Commissioner of Oaths"
- You are free to add more details if there is space

Commissioner of oaths stamp

- Your full names
- Sworn Translator RSA
- Division of high court and registration number
- The words "*Ex Officio* Commissioner of Oaths"
- Physical address
- Telephone number (optional)

Stamp and sign every page of your translation. Let your signature slightly overlap your stamp or certification statement in order to make it difficult for someone to copy and paste your signature.

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Examples of wording on stamps

(a) Commissioner of Oaths designation stamp:

> _____
> *[Insert signature]*
> *Ex officio* COMMISSIONER OF OATHS
> *[Insert full name and surname]*
>
> SWORN TRANSLATOR (RSA)
> *[Insert full business address]*

(b) Oath stamp:

> I certify that the DEPONENT has acknowledged that he/she knows and understands the contents of this affidavit, that he/she does not have any objection to taking the oath, and that he/she considers it to be binding on his/her conscience, and which was sworn to and signed before me at ..... on this the .....day of 20 .... , and that the administering oath complied with the regulations contained in Government Gazette No. R 1258 of 21 July 1972, as amended.

(c) Certification stamp:

> I certify that this document is a true copy of the original which was examined by me and that, from my observations, the original has not been altered in any manner.

OR

> Certified a true copy of the original.

When to use which stamp:

When administering an oath:

Commissioner of Oaths designation stamp + Oath stamp

When certifying a copy:

Commissioner of Oaths designation stamp + Certification stamp

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If you only intend certifying documents you may opt to use the following template for your stamp:

Certified a true copy of the original

_____

[Insert signature]

Date: _____

Ex officio COMMISSIONER OF OATHS

[Insert full name and surname]

SWORN TRANSLATOR (RSA)

[Insert full business address]

(See page 28 for powers of a Commissioner of Oaths.)

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RULES AND REGULATIONS RELATING TO SWORN TRANSLATION

Whereas most general translations have a strong communicative function with the emphasis on making the message easily accessible to the target reader, this is not the only criterion in sworn translation.

Sworn translators have no poetic licence and should not attempt to improve on the source document or adapt it to a specific audience. You may not manipulate the text in any way; the translation must accurately reflect the source document, including any errors that you pick up, for example with respect to numbering, spelling of names, etc.

You must assume that every word and every nuance have a purpose, and reproduce the content, every signature, every stamp in the way they appear on the original.

This obviously does not mean that you must translate and transcribe every word literally. You must follow the norms of good translation, but adhere strictly to the **form of the original**.

Accuracy

Although accuracy is important in any translation, it is absolutely crucial in sworn translation. A small omission or change might result in a case being thrown out of court or someone's life or dreams being destroyed.

Carefully check everything, especially names, numbers and dates. Do not omit or add anything.

Translate what appears in the document and do not alter it in the light of changed circumstances of which you may be aware, such as the renaming of a university or faculty. Had the certificate originally been issued in English, it would have reflected the old name.

Consistency

Be consistent with your vocabulary. If the source text uses the same term throughout, do the same. Do not change the name you have given a particular educational qualification in different parts of a document, or refer to an institution, department or office in a different way.

Be consistent in the language you use. If you are translating from English into French, for example, everything must be in French, including your translator's notes. If you put those in English, the client is still not going to be able to understand them!

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Confidentiality

You are required to maintain the confidentiality of information which you receive.

Your duty as a sworn translator to maintain confidentiality remains also after you have left the profession of a sworn translator.

The person who requests the sworn translation or the legal successor or representative of the person may release you from the duty to maintain the confidentiality on the basis of a written consent.

Legal terminology

As a sworn translator you should make a concerted effort to study legal terminology and legal writing, as much of your work concerns legal documents.

- Learn more about legal terminology and writing by reading legal texts whenever you can, particularly if they are available in two languages.

- Visit https://www.justice.gov.za/legislation/acts/acts_full.html for access to all current South African legislation. All the Acts can be found here, it is a wonderful link and worth bookmarking for easy access.

- Buy copies of standard legal documents like leases and contracts from stationers. These are also freely available on the internet – when doing a search, click on the 'Images' tab.

- Experienced sworn translators are usually good at sharing information – build up a network of contacts.

- Create your own library of documents such as adoption papers, apprenticeship contracts, divorce orders, etc. Many of these can be found on the internet. As there are many versions, make sure you use one that applies to the relevant year.

- If you plan on doing a lot of legal translation, taking a law course or degree is a good idea. In some countries a legal qualification is a basic requirement. In Argentina, for example, prospective sworn translators can study a course at the School of Law of the University of Buenos Aires or at the Faculty of Languages of the National University of Córdoba.

Format and layout

The translation must follow the format and layout of the source document. The recipient should be able to compare the translation and original source document easily.

What appears on the original page should also appear on the translation – nothing more, nothing less. Do not run over onto a new page. Use a slightly smaller font size or play around with the line spacing to fit everything in on the same page.

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Reproduce or indicate page borders and colours, and different colour fonts or signatures. Indicate whether the document is laminated, in a frame, bears a watermark, is stapled or has punch holes.

Draw a horizontal line under the last line to indicate the last line of the translation.

Stamps, initialling and signatures in the source text should not interfere with the flow of the text. If necessary, translate or describe them at the top or bottom of the page.

Page numbering

Each page of the translation should be numbered in this way:
Sworn Translation: Page 1 of 5

This should be done for all translations, including one-page certificates.

Usually, the top right-hand corner of the page is the least obtrusive position for the numbering.

Certification statement, signature and stamp

Certification statement

The certification statement on each page should include:

- your full names;
- that it is a sworn translation from [source language] to [target language]; and
- whether the source document was an original document, certified copy, photocopy, electronic copy, etc.

The certification statement can be in the form of a rubber stamp. For long documents, it is more efficient to include it as a footer in the text of the translation. Inserting it as a footer ensures that the statement looks the same on each page and can be excluded from the final word count for which the client has to pay.

Examples of wording to be used in a certification statement:

> I, the undersigned, **John Doe**, hereby certify that this is a true and accurate translation in [target language] of the original [source language] document.
> Signed: _____ At: _____ On: _____
>
> or
>
> I, the undersigned, **John Doe**, hereby certify that this is a true and accurate translation in [target language] of a certified copy of the original [source language] document.
> Signed: _____ At:_____ On: _____

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Sworn translator signature and stamp

- Sign every page of the translation.
- Sign in a way that your signature cannot be copied and pasted onto another document without your knowledge or consent.
- Sign slightly over your sworn stamp or certification statement.
- Some translators staple a certified copy to the translation down the left margin and then open the pages like a book and put their stamp over the join, so that the pages cannot be separated or exchanged without this being obvious.

Cover Letter

It is not compulsory to add a cover letter to your sworn translation, but many translators do. The layout is your choice entirely.

Your cover letter should include –

- your full names and contact details;
- the high court where you are admitted, your registration number and date;
- your qualifications;
- your accreditations and memberships;
- a list of the translated documents;
- the source and target language;
- whether the source document was an original document, certified copy, photocopy, electronic copy, etc.; and
- any further details specified by the client.

If the translation is apostillised, the cover letter must be included.

Translator's notes

Avoid lengthy translator's notes and descriptions. Keep them short and to the point. They should not detract from the translation or clutter up the page.

In order to make it clear that the translator's note is not part of the translation, use a different font (preferably a smaller font so that it does not detract from the translation) and put it in square brackets.

Use short descriptions.

[Signed] or *[Signature]*
[Official FNB logo]
[Official logo]
[Illegible]
[Handwritten note]
[Official coat of arms of the University of Pretoria]

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Avoid lengthy descriptions that do not add value.

> *[The coat of arms of the University of Potchefstroom, depicting a candelabra with seven lights in a shield, in yellow and brown, with the motto "In thy light", appears here.]*

Avoid descriptions that repeat information or could be incorrect.

For example, do not write *[Signature of John Smith appears here]* if John Smith's name is already typed below the signature. Also, unless you were present at the signing of the document you cannot be certain whose signature it is.

Source documents

Sworn translations should be done from an original document or a certified copy thereof. As the sworn translator you must *personally peruse* these documents. Your certification statement should indicate whether the source document was an original document or a certified copy.

However, there are times when an original document or certified copy is not available.

Photocopies

Clearly indicate that the translation was done from a photocopy. Protect yourself by attaching the copy that you have worked from to your translation, stamp and sign it, and add the following words to your certification statement and your cover letter:

> *I, John Doe, hereby certify that I have done a true and correct translation from [source text] into [target text] of the attached signed and stamped copy of the original document. I cannot attest to the authenticity of the original document.*

Electronic copies

Examples of electronic copies would be bank statements that a client has forwarded to you that originate from the bank. State that you have translated from an electronic copy.

Scanned copies

Scanned copies are treated the same way as photocopies. If no original document or certified copy is available, print the scan, stamp and sign it, and use the same statement as under *Photocopies* above.

To protect yourself, it is essential to always add the words or a combination thereof:

I cannot attest to the authenticity of the original document.
or
I have not personally perused the original document.
or
The original document was not available for my perusal.

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Always add the signed and stamped photocopy or printed scanned document to your translation when you were unable to peruse the original document or certified copy, except in the case of court transcripts.

Make sure you refer to the signed and stamped attached copy in your certification statement and cover letter.

Bilingual source documents

Sworn translators are often requested to translate bilingual documents where certain parts of the document are in one language only.

Translate what needs translating and reproduce what already appears in the target language. The final translation should be in the target language only. You must state that the translation was done from a bilingual document, either in your certification statement or as a translator's note.

Coats of arms, logos, emblems, seals

Coats of arms, logos, emblems and seals should be described in the same position in which they appear on the page in the original document, as simply as possible.

You may also choose to copy and paste relevant images, if you have a PDF-to-Word converter program **and** if your document is **clearly marked** *Sworn Translation* in the page numbering and in your certification statement or sworn translator stamp.

Always avoid lengthy descriptions.

Important: *For purposes of the SATI examination, coats of arms, logos, emblems and seals must be described, you may* ***not*** *copy and paste.*

Foreign words and phrases, including Latin

If an original document contains words, terms and phrases in a language other than your language combination (i.e. Afrikaans in an English document to be translated into French), you should leave them in the original language. You may only translate between languages for which you are sworn, even if you understand the other languages involved.

The same applies to the names of degrees that appear in Latin on academic certificates. Leave as is.

Legislation and names of statutes

You may not retranslate existing legislation or the names of laws, etc. Do the necessary research to obtain the original name or text.

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Names of organisations, companies, institutions and people

- Never translate people's names.

- Keep the names of organisations, companies and institutions the same as in the source language if the name is registered in one language only. If there is a recognised, official equivalent in the target language, use the correct name. You will be able to research this on the internet.

- If you are translating between the official languages of one country, i.e. where you are translating within the same legal system (such as in South Africa between Afrikaans and English), you may translate terminology such as "(Edms) Bpk" to "(Pty) Ltd". However, if you are translating into a language of a country with different company laws, do not translate these terms.

- If a university has been renamed, translate the name as it appears on the original document or certificate. Do not use the new name. If the certificate had originally been in issued in English, it would have depicted the old name. As the sworn translator you are expected to translate the original document as it appears.

Signatures, initials and stamps on the source document

Signatures of other people

Never copy any signature onto a sworn translation. Simply indicate the presence of a signature by inserting *[Signed]* or *[Signature]* in the appropriate position, without interfering with the text.

Initials

Where documents have been initialled on every page, indicate the initials by simply typing *[Four sets of initials]* in the appropriate position.

Stamps

Where a date or other stamp appears on the document:

- If you are able to do so using a text box, you can recreate the stamp. Use italics or a handwriting font to indicate any handwriting that may appear on the stamp and insert *[Signed]* or *[Initialled]* as appropriate.

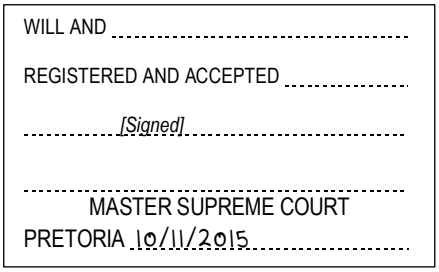
- Alternatively, create a text box with a translator's note describing the stamp: *[Signed round stamp dated 2000-07-19 stating: John Doe, Notary Public]*

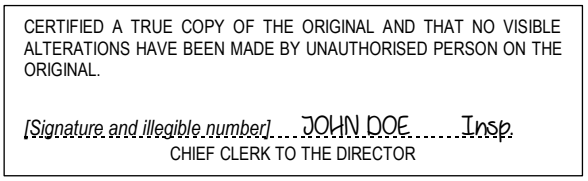
- It is also acceptable to insert text at the bottom of the page stating: *[The document has been stamped by John Doe, Notary Public, on 2000-07-19.]*

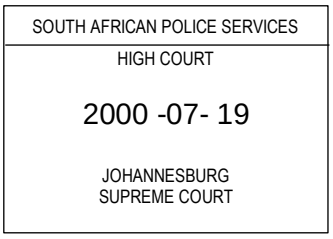
- If the date or stamp is illegible or only partially legible, then this must be noted: *[An illegible stamp appears here.]* or simply *[Illegible stamp].*

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Examples of recreated stamps







Important: *For purposes of the SATI examination, stamps must be described, you may* ***not*** *recreate the stamp.*

Special features

Use translator's notes to mention special features in the document (e.g. watermarks, erasures, handwritten notes, corrections, deletions, punch holes, tears, etc.) which could be of significance in establishing the authenticity or otherwise of the source text.

Sections that have been crossed out but are still legible should be translated – use the Strikethrough function in Word as appropriate, or insert a note stating that the text was crossed out in the source document. If you do not translate the crossed-out sections, you should insert a note to this effect.

A note is also required for sections which have been crossed out and are consequently no longer legible, and for any other text which is illegible.

Spelling/typing errors/discrepancies

- Source documents often contain typographical and spelling errors. Unimportant typographical/spelling errors, such as 'inteligent', can simply be translated correctly without being highlighted.

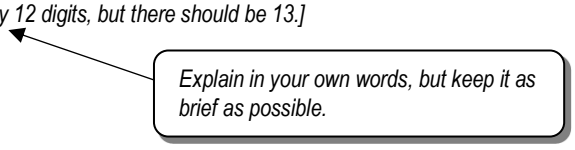
- Where an error concerns a name or ID number or something equally important, you have the following options:

  - It would not be wrong to leave it as it appears on the source document as it is not the duty of the sworn translator to correct it. However, you must add a translator's note so that it is clear the error is not yours: *[Name spelt as it appears on the original French document.]*

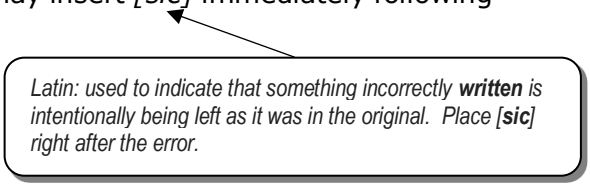
  - If you are absolutely certain of the correct wording (e.g. if "Arthur" is spelt "Artur" in only one instance in the document, but "Arthur" everywhere else), you can insert a note similar to this: *[Typographical error: 'Artur' changed to 'Arthur' as in rest of document.]*

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- If the error is obvious but you are not sure how to correct it, insert a note similar to this: *[Typographical error: ID number has only 12 digits, but there should be 13.]*



- When in any doubt, just leave it as it is. You may insert *[sic]* immediately following the error.



Texts beyond a translator's capabilities and expertise

Sworn translators are often asked to translate highly technical and/or challenging documents. Being thrown in the deep end is not a bad thing at all; this is how we learn and grow and gain experience in a variety of fields.

Read similar documents on the topic, do lots of research, obtain assistance from colleagues and experts in the field.

Upon completion you should be satisfied that the translation is as good as if it had been done by an expert in the field. You should never guess.

If you know full well that a translation is beyond your personal capabilities and/or expertise, please decline the work and refer the client to another sworn translator or to SATI for assistance in finding the right translator.

Official documentation – foreign languages

Although it is important to translate documents like birth certificates, marriage certificates, etc. accurately, these can be localised to some extent, in order to make them more comprehensible to the local authorities.

For example, Russian certificates of this type are very staid and awkward if translated directly, and so it is acceptable to use 'Name of Child' rather than 'Name of Citizen' in a birth certificate, as this is what appears on the certificate in most English-speaking countries. However, do not depart too far from the original, and only if really necessary.

Degrees, diplomas, certificates

- The layout of the translation must closely resemble that of the original certificate.

- If you are translating documents between languages within the same educational system (e.g. between Afrikaans and English in South Africa), obtain copies of the documents issued by the relevant institution in both languages so that you can use the wording in the same way as that institution. Remember, however, that documents change over time so you must ensure that you are using the correct version as a template.

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- When translating educational certificates from other countries, where the source and target language education systems differ, find the closest possible linguistic equivalent (not the educational equivalent) in the target language and annotate the translation.

Annotating a text implies explaining concepts in the source culture in terms of target language referents, and in order to do this it is essential for you to have a good knowledge of both education systems. For example, the German *Abitur* might be annotated as follows: "A school-leaving qualification in Germany, obtained after 13 years of schooling."

It is not your job to determine the equivalent South African qualification for a foreign qualification (or vice versa), but take care not to give an incorrect impression of a foreign qualification. For example, a French *baccalauréat* or Spanish *bacchilerato* (a secondary education qualification) is not the same as a South African bachelor's degree. Similarly, a university graduation certificate in Russian is a *diplom,* but this is not the same as a diploma in English.

To avoid mistranslation, verify what qualifications comprise if you are uncertain and then annotate the translation. One way of doing this is to take the definition of the type of degree or qualification given in a source language dictionary, which will often explain fairly explicitly, and then to translate this, keeping the formulation simple.

Court transcripts

When translating a court transcript you will rarely receive the original document: it will be a photocopy or a scanned copy via email. This is acceptable for court transcripts. The attorney who instructs you accepts responsibility for the authenticity of the copy.

The sworn translation is not signed and stamped on every page, but a translator's certificate is annexed to it. (See translator's certificate on page 102.)

In addition to the translator's certificate, you should also include your cover letter (discussed above).

Academic transcripts and module outcomes

When translating academic transcripts or module outcomes taken from a university yearbook, you will receive photocopies stamped by the university and with the relevant modules underlined. You can choose to format your translation in two ways:

1. Stick to the page layout of the yearbook:
   - Translate only the modules relevant to the qualification (i.e. the underlined modules).
   - Indicate within the translation where modules not relevant to the qualification have been omitted.

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2. Combine the modules in one document.
   - Translate only the modules relevant to the qualification (i.e. the underlined modules) without following the layout of the yearbook.
   - Next to the title of each module in your translation, indicate the year and page number on which it appears in the yearbook. (See example below.)
   - Indicate in a translator's note that you have combined the relevant modules from all the attached yearbook copies in one document.
   - State that each page bears the stamp of the university.
   - Attach the yearbook copies to your translation.

From yearbook 2006

LLBR211 INTRODUCTION TO JURISPRUDENCE *[Yearbook 2006, page B54.]*
PC 3 hours 1:1
On completion of this module, you should be familiar with the terminology of Jurisprudence; have an understanding of different theoretical approaches to law and legal studies; be able to understand the points of view of different schools of thought on particular issues and problems; be critically able to compare them and to formulate your own views on these issues; and be knowledgeable about the views of a Reformational Jurisprudence on the abovementioned issues and problems and to evaluate these views critically.

WhatsApp messages

This is a fairly new requirement by countries to prove that you are indeed married or in a committed relationship.

- For emigration purposes, format the sworn translation as you would any other, i.e. as close to the original WhatsApp layout as possible.

- For court purposes (if it is intended to form part of a South African court record), stick to the court format, i.e. Arial 12, double spacing, 25 lines, line numbering, etc. Add a note (in a footnote, cover letter or translator's certificate) stating that you have followed the court layout and not the typical WhatsApp layout. Indent the replying WhatsApp to enable the court to clearly distinguish between the two parties.

Electronic version of the translation

Your signature and sworn translator stamp may be inserted as an image. The translation should then be saved as a bundle, including the cover letter and a signed and stamped copy of the source document, and provided to the client in PDF format (or an alternative file format that typically hampers document manipulation).

Use an appropriate software program to protect the electronic version of the translation against copying and/or editing of document contents.

Alternatively, you may scan the hard-copy bundle and email it to the client after applying the same protection (provided that a scanned copy is accepted). Most offices require the original hard copy of the translation.

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Be sure to include your certification statement and cover letter stating the fact that a signed and stamped copy of the original text in the source language is attached.

Example of wording to be used in a certification statement:

> *I, **John Doe**, hereby certify that I have done a true and correct translation from [source text] into [target text] of the attached signed and stamped copy of the original document. I cannot attest to the authenticity of the original document.*

Check your translation!

Check your translation for any mistakes. Mistakes may have dire consequences for the client and for you.

When sharing work with other sworn translators, where the final product is going out under your name, check their work too, as you are ultimately responsible for their translation.

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REGULATIONS FOR A COMMISSIONER OF OATHS

Who is authorised to be a commissioner of oaths?

In terms of South African law, sworn translators are authorised to act as commissioners of oaths in South Africa and thus are able to commission affidavits and certify documents.

You are only designated an *ex officio* commissioner of oaths for the period for which you are in the specific post/capacity of the post. If you resign, retire or change careers, you will need to reapply.

Powers of commissioners of oaths

Any commissioner of oaths may administer an oath or affirmation to or take a solemn or attested declaration from any person.

This function is regulated by the Justices of the Peace and Commissioners of Oaths Act 16 of 1963.

You may not execute this function if –

- you are prohibited from doing so in terms of the Act;
- you have reason to believe the person in question is unwilling to make an oath, affirmation or declaration; or
- you have a personal interest in the matter in question.

A commissioner of oaths may not charge a fee.

How to perform an oath or affirmation

As the commissioner of oaths, you must do the following:

- Request the person making the oath/affirmation (the deponent) to present some form of official identification.
- Ask the deponent to confirm whether they have read and understood the contents of the declaration, whether they have any objection to taking the prescribed oath/affirmation, and whether they consider the prescribed oath/affirmation to be binding on their conscience.

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- If the deponent affirms or does not object to all of the above, have them say the following words: "I swear the contents of this declaration are true, so help me God." or "I truly affirm the contents of this affidavit are true." If the deponent does not affirm or does object to the above, do not proceed.

- Have the deponent sign the affidavit in your presence.

- Append your certification and sworn translator stamp at the end of the affidavit, and sign in the deponent's presence. (See page 14 for examples of commissioner of oaths stamps.)

How to certify a copy of a document

As the commissioner of oaths, you must do the following:

- Compare the original document and the copy to satisfy yourself that they are exactly the same. You can also make the copy yourself.

- Append your sworn translator stamp and the following certification to the page:

> *I certify that this document is a true copy of the original which was examined by me and that, from my observations, the original has not been altered in any manner.*
>
> or
>
> *Certified a true copy of the original.*

- Date your certification.

Mere knowledge of the existence of the original document will not suffice – the commissioner must personally inspect/view/peruse the original document and compare same to the copy.

Always act professionally and adhere to the law and the rules.

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SWORN/COURT INTERPRETERS AND INTERPRETING

Except for court interpreters employed on a full-time basis by the Department of Justice, there are no permanently sworn interpreters in South Africa.

Interpreters are sworn in for a particular session of court only. If they return to assist in another matter, they will be sworn in again. Judges or magistrates have to be satisfied with the interpreter's competence before they will swear them in.

How to become a sworn interpreter

Anyone can interpret in court if approved by the court. Courts often like to use sworn translators as sworn interpreters, as they have proved their language competence. This is, however, an incorrect assumption, as successful translation is no guarantee of successful interpreting.

Legal Interpreting and Legal Interpreting Skills courses are offered at some universities and institutions.

Become familiar with court procedures and legal terminology.

Discuss some procedural law with legal representatives and spend time observing proceedings to acquaint yourself with what is required in terms of proper court behaviour, i.e. when to render the interpretation, not to interrupt the judge or magistrate or prosecutor while they are speaking, not to walk in front of them when the court is in session, to switch off your phone, etc. As long as you are a good interpreter, the court officials will also guide you.

Court interpreting is consecutive interpreting. It carries an enormous responsibility, as people's fates are determined by the evidence you translate. You are there as an intermediary in the process and must remain impartial at all times, merely assisting in the court process.

Try to be briefed by the legal representatives prior to going into court, to familiarise yourself with the facts of the case. Alternatively, ask to see or receive a copy of the file relating to the case, so you can study it beforehand as preparation.

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APOSTILLE

French word meaning 'certification'.
SA pronunciation: ah-pos-steel
US and UK pronunciation: uh-pos-till
French pronunciation: ah-po-steeju

What is an Apostille?

An **Apostille** is a certificate governed by the **Apostille Convention**, which was developed by the Hague Conference on Private International Law. A country does not need to be a member of the Hague Conference to be party to the Apostille Convention. Signatory countries to the Apostille Convention have agreed to recognise public documents issued by other signatory countries if those public documents are accompanied by an internationally recognised form of authentication (the Apostille).

The Hague Convention of 5 October 1961:
*"**Abolishing the Requirement of Legalisation for Foreign Public Documents**."*
*Commonly known as **the Apostille Convention.***

A status table of contracting parties to the Apostille Convention is available at https://www.hcch.net/en/instruments/conventions/status-table/?cid=41

Apostilles can only be issued for documents issued in one country party to the Apostille Convention and that are to be used in another country which is also a party to the Convention.

An Apostille may never be used for the recognition of a document in the country where that document was issued – Apostilles are strictly for the use of public documents abroad!

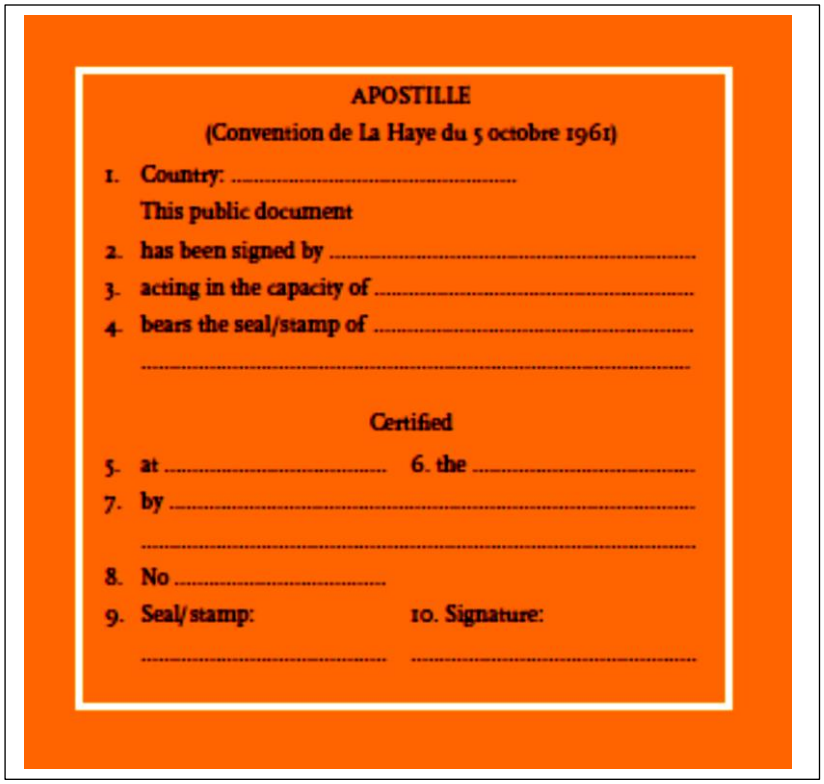
Who issues an Apostille?

Each country that is party to the Convention must designate one or several authorities that are entitled to issue Apostilles. These authorities are called Competent Authorities.

In South Africa the Competent Authority that apostillises sworn translations is the high court. The high court does not charge a fee for the service. It verifies the signature and stamp of the sworn translator. The Apostille is placed on top of the original translation and then bound with a ribbon and the seal/stamp of the registrar of the high court. The Apostille must be issued by the high court in the same jurisdiction in which the sworn translator has been sworn.

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Template of an Apostille as annexed to the Hague Convention



APOSTILLE

(Convention de La Haye du 5 octobre 1961)

1. Country: .....
   This public document
2. has been signed by .....
3. acting in the capacity of .....
4. bears the seal/stamp of .....

.....

Certified

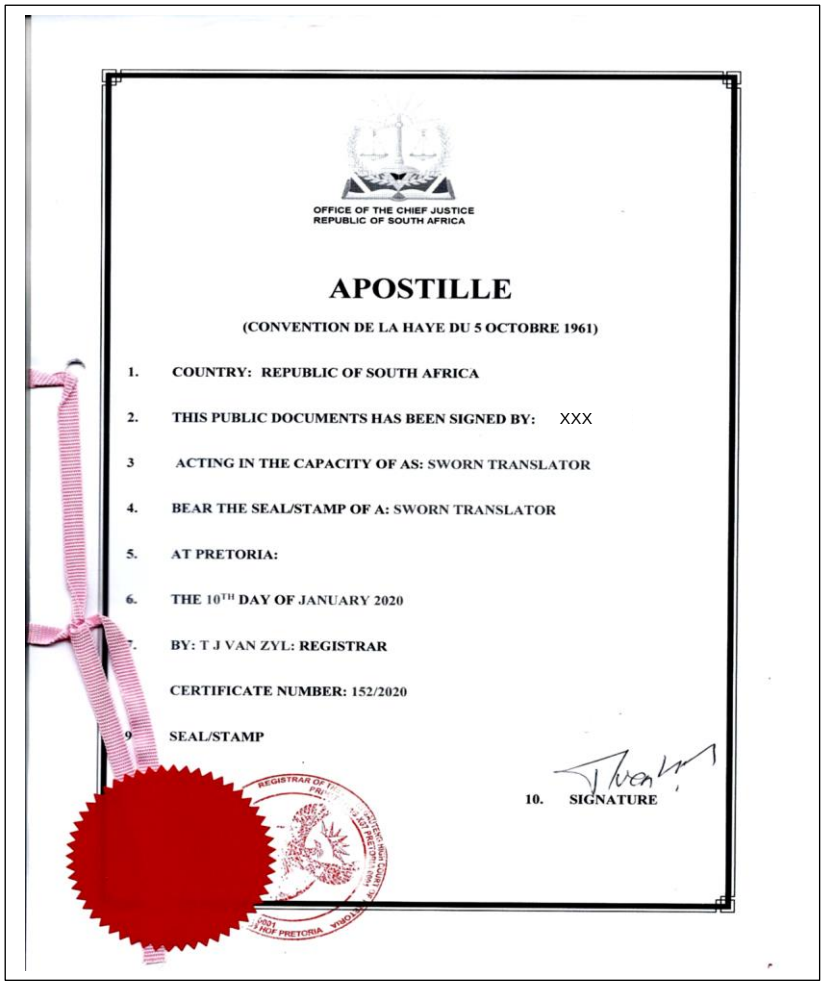
5. at ..... 6. the .....
7. by .....

.....

8. No .....
9. Seal/stamp: 10. Signature:

....

Example of an Apostille issued by the North Gauteng High Court



OFFICE OF THE CHIEF JUSTICE
REPUBLIC OF SOUTH AFRICA

APOSTILLE

(CONVENTION DE LA HAYE DU 5 OCTOBRE 1961)

1. COUNTRY: REPUBLIC OF SOUTH AFRICA
2. THIS PUBLIC DOCUMENTS HAS BEEN SIGNED BY: XXX
3. ACTING IN THE CAPACITY OF AS: SWORN TRANSLATOR
4. BEAR THE SEAL/STAMP OF A: SWORN TRANSLATOR
5. AT PRETORIA:
6. THE 10TH DAY OF JANUARY 2020
7. BY: T J VAN ZYL: REGISTRAR
8. CERTIFICATE NUMBER: 152/2020
9. SEAL/STAMP
10. SIGNATURE

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Electronic Apostilles and electronic Registers of Apostilles

The Apostille Convention allows Competent Authorities to issue Apostilles in electronic form (e-Apostilles) and to maintain electronic registers of Apostilles (e-Registers). South Africa has not yet implemented these systems.

The ABCs of Apostilles is a brochure for users of Apostilles, with short answers to frequently asked questions, including when, where and how Apostilles are issued. It is available at: https://assets.hcch.net/docs/6dd54368-bebd-4b10-a078-0a92e5bca40a.pdf

Source: https://www.hcch.net/en/instruments/specialised-sections/apostille

CERTIFICATE OF AUTHENTICATION

Countries that are not party to the Apostille Convention (such as Canada) may require a **Certificate of Authentication** to be attached to the sworn translation.

Authentication follows the same procedure as an Apostille. In South Africa, sworn translations are authenticated at the high court. The high court issues the Certificate of Authentication, places it on top of translation and binds it with a ribbon and seal. There is no fee for this. Authentication may also require additional certification or legalisation by the embassy or consulate of the foreign country to which it is addressed.

Institutions such as DIRCO (the Department of International Relations and Cooperation, the foreign ministry of South Africa) may authenticate documents other than sworn translations.

In some cases, the consulate of the destination country must authenticate the signature on the translation. Italy, for instance, does not recognise sworn translators from South Africa unless their signature as a translator has been authenticated by the local consular representative. This requires a stamp from the consulate and the purchase of an Italian revenue stamp. You would be required to submit a copy of your court-issued certificate and a copy of your signature for the consulate's files. In authenticating the translator's signature in this way, the consular authority does not take any responsibility for the translation, but merely certifies that the person who has undertaken the translation is duly recognised by the local authority.

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Example of a Certificate of Authentication



CERTIFICATE OF AUTHENTICATION

XXXX

XXXX

LIEUTENANT COLONEL

SOUTH AFRICAN POLICE SERVICE (SAPS)

CANADIAN AFFIDAVIT

Sometimes sworn translators are requested to complete the Canadian Affidavit, called an '85134 Translators Affidavit,' which has to be signed in front of a notary. The client will provide the translator with this affidavit.

A notary does not charge for their time nor the execution of authenticating the document. However, a sworn translator is entitled to charge a reasonable fee for having to travel to the notary. This cost must be agreed upon between the translator and the client in advance.

The Canadian Affidavit is only completed upon the request of the client. It is not required for every translation intended for Canada. It is usually required in addition to the Certificate of Authentication.

(See example on page 71.)

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Are Apostilles and Certificates of Authentication interchangeable?

Although sworn translators are not responsible for obtaining Apostilles and Certificates of Authentication from the high court, some assist their clients upon request.

Apostilles and Certificates of Authentication are not interchangeable and the correct process must be followed. Making the wrong choice could result in a document being rejected by the foreign country. It is necessary to clearly specify the country of destination to ensure that the registrar issues the correct document.

Agencies and sworn translation

The same rules and regulations apply when you do a sworn translation through an agency. An agency has to use a sworn translator for all sworn translations issued through them.

- A sworn translator must ***personally peruse*** the original document or certified copy when doing a sworn translation through an agency. The agency may not peruse the original document or certified copy on their behalf.

- A sworn translation done by a sworn translator in one language combination cannot be signed off by a sworn translator in a different language combination. ***This constitutes fraud.***

- Should a sworn translator in the relevant language combination be requested to sign off a translation done by a general translator, the sworn translator accepts full responsibility for the translation concerned, as only their details will appear on the translation, not those of the general translator. Sworn translators should be VERY careful when doing this. ***This is NOT common practice and NOT encouraged.***

- Agencies may not sign off or stamp sworn translations on behalf of a sworn translator – with or without their consent.

- A sworn translator may similarly not give permission to an agency to use their name on any document not perused or translated by themselves.

- Being an accredited agency with SATI does not give an agency blanket accreditation for sworn translations or any other translations.

- Where there is no sworn translator in a particular language combination and a double translation is required, e.g. from Afrikaans to English and then from English to French, ***both translations must be done by a sworn translator.***

Revenue Stamps

Sworn translations do not require revenue stamps. The Stamp Duties Act 77 of 1968 was repealed with effect from 1 April 2009. All lease agreements executed on or after to this date are not liable for Stamp Duty.

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Correct names of High Courts of South Africa

The High Courts of South Africa were renamed on 1 March 2009 in the Renaming of High Courts Act 30 of 2008. Please use these names correctly. When a document is dated before 2009, use the old name.

SEAT OF HIGH COURT	NAME OF HIGH COURT	PREVIOUS NAME
Bhisho	Eastern Cape High Court, Bhisho	Ciskei High Court
Bloemfontein	Free State High Court, Bloemfontein	Orange Free State Division
Cape Town	Western Cape High Court, Cape Town	Cape Provincial Division
Durban	KwaZulu-Natal High Court, Durban	Durban and Coast Local Division
Grahamstown	Eastern Cape High Court, Grahamstown	Eastern Cape Provincial Division
Johannesburg	South Gauteng High Court, Johannesburg	Witwatersrand Local Division
Kimberley	Northern Cape High Court, Kimberley	Northern Cape Provincial Division
Mafikeng	North West High Court, Mafikeng	Bophuthatswana High Court
Mthatha	Eastern Cape High Court, Mthatha	Transkei High Court
Pietermaritzburg	KwaZulu-Natal High Court, Pietermaritzburg	Natal Provincial Division
Port Elizabeth	Eastern Cape High Court, Port Elizabeth	South Eastern Cape Local Division
Pretoria	North Gauteng High Court, Pretoria	Transvaal Provincial Division
Thohoyandou	Limpopo High Court, Thohoyandou	Venda High Court

Charging for sworn translations

A sworn translator's fee is an agreed fee between the sworn translator and the person requesting the service before the provision of service in written quotation. The sworn translation may cost about 20 to 30% more than a standard translation.

Determining a fair price depends on the language pair, complexity, turnaround time, format and length of document.

Getting yourself known

Having become a sworn translator, how do you let the world know you are available for this type of work?

- SATI members may be referred to clients who contact the office requesting the names of sworn translators.

- In addition, SATI members can pay an annual fee to be included on the register of freelancers on the SATI website, which is searchable by members of the public.

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- Obtain a listing in the 'Sworn Translators' section of a legal diary, such as:
  - LexisNexis *Law Diary and Directory*. Website: www.lexisnexis.co.za
  - Hortors *Legal Diary.* Website: www.hortorssadiaries.co.za
- Advertise on the internet. There are a myriad free advertising websites.
- Contact emigration/immigration agents and attorney firms in your area to make them aware of your services.
- Word of mouth is your best advertisement!
- Translators working in foreign languages should contact the local diplomatic representative to confirm how to register and what the requirements are for South African translations to be officially recognised in the country in which they will be used. This is important, or a client may end up paying for a translation that is ultimately useless.

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USE COURT LAYOUT FOR ALL COURT DOCUMENTS. *(See page 11.)*

CASE NO: *[Your case number]*

For use by private examiner, not SATI.

ANNEXURE A

IN THE HIGH COURT OF SOUTH AFRICA

(NORTH GAUTENG HIGH COURT, PRETORIA)

[Change to applicable court]

In the matter of the Application of *ex parte*

[Full names, caps and bold, not underlined] Applicant

CERTIFICATE IN TERMS OF RULE 59(2) OF THE RULES OF THE ABOVE HONOURABLE COURT

I, the undersigned

[Insert name of examiner]

do hereby make an Oath and State:

1. My full names are *[insert name of examiner]*. The facts herein contained are within my own knowledge and belief and I swear positively to the facts herein stated.
2. I am a competent Sworn Translator from *[insert language]* into *[insert language]* and from *[insert language]* into *[insert language]* of not less than seven years' standing.
3. On the ___ day of _____ 20__ the Applicant,

   [insert candidate's name], of

   [insert candidate's residential address], South Africa,

   holder of *[insert identification details]*, presented himself/herself before me in order to undergo an examination as to his/her proficiency in the *[insert language]* and *[insert language]* languages, in

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terms of Rule 59(2) of the Rules of the above Honourable Court.

4. At the conclusion of the aforesaid examination, I was satisfied with the Applicant's proficiency in the *[insert language]* and *[insert language]* languages and found him/her to be able to translate, accurately, from *[insert language]* into *[insert language]* and from *[insert language]* into *[insert language]* .

[Signed and stamped by the examiner]

DEPONENT: SWORN TRANSLATOR

Dated at _____ on the ___ day of _____ 20___.

Address: *[insert address]*

_____

_____

(Case Number: _____)

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

PRETORIA *[Change to applicable court]*

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CASE NO: *[Your case number]*

IN THE HIGH COURT OF SOUTH AFRICA

(NORTH GAUTENG HIGH COURT, PRETORIA)
[Change to applicable court]

In the matter of the Application of *ex parte*

[Full names, caps and bold, not underlined] Applicant

(for admission as a Sworn Translator)

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TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

PRETORIA *[Change to applicable court]*

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CASE NO: *[Your case number]*

IN THE HIGH COURT OF SOUTH AFRICA

(NORTH GAUTENG HIGH COURT, PRETORIA)
[Change to applicable court]

In the matter of the Application of *ex parte*

[Your full names, caps, bold, not underlined] Applicant

NOTICE OF SET-DOWN

BE PLEASED to place the above matter on the ROLL of cases for Hearing in the above Honourable Court, on *[insert day of the week]*, the *[insert day of the month]* day of *[insert month]*, at 10:00 in the forenoon or so soon thereafter as Counsel may be heard.

DATED at PRETORIA on the 28th day of November 2011. *[Change to applicable place and date]*

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

PRETORIA *[Change to applicable court]*

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CASE NO: *[Your case number]*

IN THE HIGH COURT OF SOUTH AFRICA

(NORTH GAUTENG HIGH COURT, PRETORIA)

[Change to applicable court]

In the matter of the Application of *ex parte*

[Your full names in caps and bold, not underlined] Applicant

NOTICE OF MOTION

BE PLEASED TO TAKE NOTICE that Application will be made on behalf of the abovementioned Applicant on *[insert day of the week]*, the *[insert day of the month]* day of *[insert month]*, at 10:00 in the forenoon or so soon thereafter as Counsel may be heard for an Order, in the following terms:

[1] To admit the Applicant as a Sworn Translator in the High Court of South Africa, *[your court]* High Court, from _____ into _____ *[your languages]*.

[2] To authorise the Registrar of the High Court of South Africa, *[your court]* High Court, to enrol the Applicant as a Sworn Translator of the above Honourable Court from _____ into _____ *[your languages]*.

[3] To grant such further or alternative relief as this Honourable Court may deem fit.

AND that the Founding Affidavit of *[your full names in caps]* and the certified copy of the certificate of the South African Translators' Institute (SATI) annexed hereto will be used in support hereof.

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DATED at PRETORIA on the 5th day of December, 2011. *[Change to applicable place and date]*

_____

[Your signature]

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

PRETORIA *[Change to applicable court]*

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CASE NO: *[your case number]*

IN THE HIGH COURT OF SOUTH AFRICA

(NORTH GAUTENG HIGH COURT, PRETORIA)

[Change to applicable court]

In the matter of the Application of *ex parte*

[Your full names, caps, bold, not underlined] Applicant

AFFIDAVIT

I, the undersigned,

[Your full names, caps, not bold, not underlined],

do hereby make an Oath and State:

1.

I am the Applicant herein and I am an adult female *[or male]* of full age, of *[your full address]*, South Africa, and holder of identity document number *[your ID number]* issued in South Africa.

2.

On the _____day of _____ *[full date of exam]*, I presented myself before the SOUTH AFRICAN TRANSLATORS' INSTITUTE, in terms of Rule 59(2) of the High Court Rules, to undergo an examination as to my proficiency in the [French] and [English] languages, to wit, from [French] into [English]. *[Change to applicable languages]*

3.

At the conclusion of the aforesaid examination, the aforestated SOUTH AFRICAN TRANSLATORS' INSTITUTE furnished me with a certificate stating that it had examined my proficiency in the [French] and [English] languages and found me able to translate accurately

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from [French] into [English]. The said certificate is attached hereto marked "Annexure A" and to which I respectfully refer the above Honourable Court. *[Change to applicable languages in both instances]*

4.

The said South African Translators' Institute has been appointed a competent examiner by the above Honourable Court in terms of the amendment to the uniform rules of the High Court, Rule 59.

5.

I am desirous of being admitted as a Sworn Translator of the High Court of South Africa, North Gauteng High Court, from [French] into [English] and I respectfully submit that I am a fit and proper person to be admitted. *[Change to applicable court and languages]*

6.

Wherefore I humbly pray that it may please the above Honourable Court to grant an Order in the following terms:

[1] To admit me as a Sworn Translator in the High Court of South Africa, North Gauteng High Court, from [French] into [English]. *[Change to applicable court and languages]*

[2] To authorise the Registrar of the High Court of South Africa, North Gauteng High Court to enrol the Applicant as a Sworn Translator of the above Honourable Court, from [French] into [English]. *[Change to applicable court and languages]*

[3] To grant such further or alternative relief as this Honourable Court may deem fit.

_____

DEPONENT

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I hereby certify that the above Deponent has acknowledged that she knows and understands the contents of this declaration and that the Deponent has uttered the following words to me: "I SWEAR THAT THE CONTENTS OF THIS DECLARATION ARE TRUE, SO HELP ME GOD."

SIGNED AND SWORN TO BEFORE ME, AT PRETORIA, on the 5th day of DECEMBER 2011.
[Change place and date.]

_____

COMMISSIONER OF OATHS

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

PRETORIA *[Change to applicable court]*

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STATEMENT

CASE NO: *[Your case number]*

IN THE HIGH COURT OF SOUTH AFRICA

(NORTH GAUTENG HIGH COURT, PRETORIA)

[Change to applicable court]

I, *[full names in caps]*, do hereby swear that I will, in my capacity as a translator of the High Court of South Africa, faithfully and correctly translate, to the best of my knowledge and ability, any documents from the [German] language into the [English] language, in respect of which I have been admitted and enrolled as a translator. *[Change to applicable languages]*

Signed and Sworn to BEFORE ME IN COURT, this ____ day of _____ 20__.
[Your court date]

_____ *[Sign this in court in front of the judge]*

JUDGE OF THE HIGH COURT

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LEGISLATION RELATING TO SWORN TRANSLATION

The work of sworn translators is regulated by the Uniform Rules of Court, established under the Rules Board for Courts of Law Act 107 of 1985. Rule 59 deals specifically with sworn translators and rule 60 with the translation of documents. Section 42 of the South African Language Practitioners' Council Act 8 of 2014 also deals with sworn translators.

Uniform Rules of Court

59 Sworn Translators

(1) Any person may be admitted and enrolled by any division of the Supreme Court as a sworn translator between any two or more specified official languages of the Republic of South Africa or between any specified official language of the Republic of South Africa and any specified foreign language, upon satisfying the court of his or her competency.

(2) No person shall be admitted and enrolled as a sworn translator unless his or her competency in the languages from and into which he/she intends to translate has been duly certified in writing, after examination, held not more than six months before the date of the application by an appropriately qualified sworn translator, or unless his or her competency is otherwise proved to the satisfaction of the court.

(3) Every sworn translator duly admitted and enrolled shall, to the extent of such admission and enrolment, be deemed to be a sworn translator for all divisions of the Supreme Court, and the registrar of the division in which he is admitted shall notify the registrars of all other divisions of such admission and enrolment, and furnish his address.

(4)*(a)* Any person admitted and enrolled under subrule (1) shall before commencing to exercise the functions of his office take an oath or make an affirmation which shall be subscribed by him, in the form set out below, namely –

> 'I .....(full name) do hereby swear/solemnly and sincerely affirm and declare that I will in my capacity as a translator of the Supreme Court of South Africa faithfully and correctly translate, to the best of my knowledge and ability, any document into an official language of the Republic of South Africa from any other language in respect of which I have been admitted and enrolled as a translator'.

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(b) Any such oath or affirmation shall be taken or made before a judge of the division of the Supreme Court of South Africa admitting and enrolling the translator and the judge concerned shall at the foot thereof endorse a statement of the fact that it was taken or made before him and of the date on which it was so taken or made and append his signature thereto.

60 Translation of Documents

(1) If any document in a language other than an official language of the Republic is produced in any proceedings, it shall be accompanied by a translation certified to be correct by a sworn translator.

(2) A translation so certified by a sworn translator shall be deemed prima facie to be a correct translation and admissible as such upon its production.

(3) If no sworn translator is available or if, in the opinion of the court, it would not be in the interests of justice to require a sworn translation, whether by reason of the expense, inconvenience or delay involved, the court may, notwithstanding the provisions of subrule (1), admit in evidence a translation certified to be correct by any person who it is satisfied is competent to make such translation.

61. Interpretation of evidence

(1) Where evidence in any proceedings is given in any language with which the court or a party or his representative is not sufficiently conversant, such evidence shall be interpreted by a competent interpreter, sworn to interpret faithfully and to the best of his ability in the languages concerned.

(2) Before any person is employed as an interpreter the court may, if in its opinion it is expedient to do so, or if any party on reasonable grounds so desires, satisfy itself as to the competence and integrity of such person after hearing evidence or otherwise.

(3) Where the services of an interpreter are employed in any proceedings, the costs (if any) of interpretation shall, unless the Court otherwise orders, be costs in the cause: Provided that where the interpretation of evidence given in one of the official languages of the Republic is required by the representative of a party, such costs shall be at such party's expense.

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Subrules

Subrule 59(1): *'May be admitted and enrolled by any division.'* A local division has jurisdiction within its own area to admit and enrol sworn translators. [Ex parte Ransohoff 1934 WLD 68]

Subrule 59(1): *'An official language.'* Section 3 of the Constitution of the Republic of South Africa, Act 108 of 1996, provides that the official South African languages are Sepedi, Sesotho, Setswana, siSwati, Tshivenda, Xitsonga, Afrikaans, English, isiNdebele, isiXhosa and isiZulu.

Subrule 59(2): *'After examination.'* It has been held that the provisions of this subrule are peremptory and that the court has no discretion to dispense with the examination [Ex parte Paraskevopoulos 1947 (1) SA 229 (O)]. It is submitted that the court is not entitled, under rule 27(3), to admit and enrol as a sworn translator a person who has not been duly examined. Under the provisions of subrule 60(3) the court may, in appropriate circumstances, admit in evidence a translation certified to be correct by a person who is not a sworn translator.

Subrule 59(3): *'To the extent of such admission and enrolment.'* In view of the fact that, in terms of the subrule, a sworn translator once admitted is deemed to be a sworn translator for all divisions of the High Court the words 'to the extent of such admission and enrolment' must refer to the language in respect of which the sworn translator has been admitted.

Subrule 60(1): *'Other than an official language.'* The subrule, in requiring that a document in a foreign language must be accompanied by a sworn translation, gives effect to the decisions in Ex parte Marx et uxor [1936 CPD 483] and Ex parte Scalabrino [1939 (2) PH F93 (C)].

Subrule 60(1): *'Is produced in any proceedings.'* The subrule applies only to documents actually produced in court [Tarry & Co Ltd v Matatiele Municipality 1965 (3) SA 131 (E)].

Subrule 60(1): *'A translation certified to be correct by a sworn translator.'* It is undesirable that the attorney of record acting for a particular party should translate or certify as correct documents to be used on behalf of his client in the litigation, even though the attorney is a sworn translator of the court [Westdeutsch Landesbank Girozentrale (Landesbausparkasse) v Horsch 1993 (2) SA 342 (NM) at 345C].

Subrule 61(1): *'By a competent interpreter.'* It is to be noted that the rule does not require that evidence should be interpreted by a sworn translator; any person of whose competence and integrity the court is satisfied may be sworn in as an interpreter. Such an appointment is only ad hoc for the purposes of the particular trial being heard.

Subrule 61(1): *'Sworn to interpret faithfully.'* The account by an interpreter of the testimony of a witness who gives his testimony through an interpreter must be regarded as unsworn testimony unless the interpreter is also sworn. Such

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testimony is analogous to inadmissible evidence. [S v Naidoo 1962 (2) SA 625 (A) at 633,637; S v Mpopo 1978 (2) SA 424 (A) at 426; Tshabalala v Lekoa City Council 1992 (3) SA 21 (A) at 32]

Where evidence is interpreted, the court must have regard to what the interpreter tells the court, not what the witness himself says in the language which is being interpreted. The court and its members are not entitled to rely on their individual knowledge of the language used by the witness. [S V Mpopo 1978 (2) SA 424 (A) at 426H]

If there are reasonable grounds for doing so, and if an interpreter's rendering of the evidence was apt to be misleading and in fact misled the court, a party is entitled to challenge an interpreter's version of what a witness said. If the testimony of an interpreter is challenged on appeal, such a challenge would in effect amount to an application to lead further evidence on matters on which the interpreter has testified. It has been held that a court of appeal should be as loath to allow a party to challenge an interpreter's version of testimony as it would be to allow further evidence to be led on appeal. [Tshabalala v Lekoa City Council 1992 (3) SA 21 (A) at 32H]

Subrule 61(3): *'By the representative of a party.'* The costs of such interpretation cannot be recovered from the opposite party because all practitioners are expected to have some proficiency in the official languages.

South African Language Practitioners' Council Act 8 of 2014

42. (1) For a period, not exceeding two years from date of coming into operation of this Act, the Council may recognise –

(a) any person admitted and enrolled by a division of the High Court as a sworn translator in accordance with Rule 59 of the High Court Rules as a language practitioner for the purposes of this Act; and

(b) accreditation granted by voluntary or other associations prior to the establishment of the Council provided that the Council may conduct a competency test whenever it deems this necessary.

(2) No person or business other than the Council may regulate, register or accredit a language practitioner after the period contemplated in subsection (1) has expired.

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USEFUL RESOURCES FOR SWORN TRANSLATORS

In addition to the basic range of bilingual and monolingual dictionaries any good translator should possess, libraries, especially larger or specialist libraries, such as university libraries, the South African Library, etc. have a variety of useful references.

The Law Society Library is particularly helpful with the different laws, legislation, updates and rules. Their contact details are as follows:

www.lawlibrary.co.za
help@lawlibrary.co.za
Tel: 033 345 1304 (Pietermaritzburg)
Tel: 031 301 1621 (Durban)

Other useful resources include:

- ***Drietalige Regswoordeboek/Trilingual Legal Dictionary*****,** by VG Hiemstra & HL Gonin. Published by Juta and Co. Ltd, Cape Town & Johannesburg. 3rd edition, 1992; ISBN 0 7021 2781 7. (A useful feature is the Latin expressions with meanings in both English and Afrikaans.)

- ***Quickguide: Butterworths Guide to the Statutes of South Africa/Gids tot die Wette van Suid-Afrika (1910-1994).*** Useful for checking the title, in both languages, number and year of promulgation of Acts.

- A useful supplement to the ***Butterworths Guide*** is a periodic list of the titles of Acts published since 1999 produced by the Government Printer. The list includes the number of the Act and the number of the *Government Gazette* in which it was published. You would have to find out from the Government Printer exactly what is available.

- The so-called ***Blue Books*** produced by Butterworths, which is a set of 24 volumes dealing with the various kinds of contracts, estates, wills, tables of statutes, tables of cases. The books can be bought individually, are available in both English and Afrikaans and also come in electronic format.

- ***Notariële Praktyk*****,** by FE van der Merwe. Published by Butterworths, 2nd edition, 2000. This book sets out in detail all aspects of the various kinds of contracts. An English version is also available ***(Notarial Practice)***.

- The ***internet*** is an indispensable tool. Certain South African legislation is available online on the SA Government website (www.gov.za). This is particularly useful when your text includes direct quotations from the legislation, but is also helpful with terminology.

- ***Pharos Online*** is an online collection of general and specialist dictionaries, available for an annual fee at https://www.pharosonline.co.za.

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- ***Other language practitioners***. A useful resource in the electronic age is electronic discussion groups. Members are extremely generous with their knowledge and you can learn an amazing amount from the discussions, even if they do not necessarily relate directly to your work. Examples are ZaLang (https://groups.io/g/zalang) and Prolingua (https://www.prolingua.org.za) for Afrikaans/English translators and ProZ.com (https://www.proz.com) for translators working in Afrikaans and foreign languages.

- For the names of sworn or other translators, contact the SA Translators' Institute at office@translators.org.za or search at https://www.translators.org.za/find-a-language-practitioner/.

It is important to try to establish whether original documentation exists in your target language, to check your terminology when translating. For example, if you are doing adoption papers, obtain a copy of the Act under which adoptions are regulated (these often contain a copy of the certificates or other documents issued under the Act and can save you a lot of headaches and terminological searching). It is a good idea to collect samples of Acts, contracts, certificates, divorce orders, apprenticeship contracts and other material to use as sources.

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Examples

Please note:

- The following are examples of translations, some of them abridged versions.
- For the sake of space, certification statements and stamps have been left out.
- As examples from a number of translators were used, the layout may differ.
- You, as the sworn translator, may decide on the format you feel comfortable with, having due regard for the rules and regulations.
- The original coats of arms, logos, etc. have been scanned onto the translation in order for the documents to be easily recognisable. This is a personal preference. It is acceptable within the context of the South African courts, but as the sworn translator you must establish whether it is acceptable to the authorities for whom you are issuing your translation. A short description of these images where they appear will suffice.
- Monochrome translations are perfectly acceptable, as long as you indicate the colour of stamps, seals, signatures etc., in your translator's note. Do not describe the colours or designs of logos, emblems or coats of arms.
- None of the examples show borders, but if the source document has a border, it must be included or indicated on the translation.

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In this example, NWU combined the subjects in one document. No photocopies were included.

NORTH-WEST UNIVERSITY
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26 February 2019

MODULE OUTCOMES

MJ XXX – 12978XXX

From the yearbooks 2004 – 2008

From yearbook 2004

PC = Potchefstroom Campus

AFNL111 AFRIKAANS: LANGUAGE WITHOUT BORDERS
PC 1x1,5 1:1 On completion of the module the student should be able to identify and apply communication strategies; use Afrikaans properly, creatively and effectively in different situations, both in oral and written format; differentiate, analyse and produce various text types in Afrikaans; analyse, interpret and evaluate both functional and aesthetic Afrikaans texts.

LEER111 MODULE FOR LEARNING AND READING DEVELOPMENT
PC / T 90 min 1:1 On completion of the module you should be able to have knowledge of what higher education and advanced studies are; know yourself better as student to study with motivation and effectiveness; possess better thinking skills to think critically, apply different learning strategies, integrate new knowledge with existing knowledge and build frameworks of knowledge; effectively use contact sessions with lecturers and learning facilitators; manage time efficiently and effectively; effectively prepare and write examinations, work better in a group, be better equipped to utilise certain life skills that will lead to the optimisation of your potential and have attained the minimum desired level of reading skills.

LLBR111 INTRODUCTION TO LAW
PC 3 hours 1:1 On completion of this module you should be able to orientate yourself regarding the field of study of law and be familiar with the basic terms and classifications used in legal science.

LLBR125 LAW OF JURISTIC PERSONS AND INTRODUCTION TO ENTREPRENEURIAL LAW
PC 3 hours 1:1 On completion of this module, you should be able to explain and critically evaluate the legal subjectivity of juristic persons, the requirements for juristic acts by various kinds of juristic persons and the constitutional aspects regarding rights and obligations of juristic persons; be knowledgeable on all issues to start your own business and be able to think skilfully and creatively about business ideas. You should also be able to describe, in general, the characteristics of the different forms of enterprise used in the business environment, with the emphasis on forms of enterprise with legal personality.

PSIG151: INTRODUCTION TO PSYCHOLOGY: EMOTIONAL AND MOTIVATIONAL PROCESSES
PC X 2 hours 1:1 The student should be able to identify and explain the basic, contextual-relevant psychological approaches in relation to human emotional and motivational processes that take place in a culturally diverse environment.

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Potchefstroom Campus

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PSIG161: INTERPERSONAL, SOCIAL AND COMMUNITY PSYCHOLOGY
PC X 2 hours 1:1 The student should be able to identify and explain the theoretical foundation and value of applications in the field of behavioural sciences in relation to interpersonal, social and community psychology.

RINL111 COMPUTER AND INFORMATION SKILLS
PC / T 90 min 1:1 COMPUTER SKILLS: On completion of this module, students should have the knowledge and skills to effectively use the computer and standard word-processing, spreadsheet, presentation and web-browser software. INFORMATION SKILLS: Students should have the knowledge and skills to locate, evaluate, process and communicate scientific information by means of various technologies (the Internet and the latest types of databases) from different sources (books, journals, the Web). The delivery of this module is computer based. On completion of this module, students should have the knowledge and skills to effectively use the computer and standard word-processing, spreadsheet, presentation and web browser software and to locate, process and communicate scientific information by means of various technologies from different sources.

SKTE111 COMMUNICATION SKILLS: ENGLISH
PC/TEL 1X1,5 1:1 On completion of this module the student should be able to demonstrate basic (fundamental) and specialist knowledge of English use and usage in the Law field; communicate effectively in writing with professional audiences using appropriate structure, style and legal terminology; and demonstrate the ability to read various kinds of texts with comprehension.

[If a cover page was used to indicate each new year, then insert every cover page.]

From yearbook 2005

AFNL121 AFRIKAANS LANGUAGE AND LITERATURE STUDY: THE SCIENTIFIC PROCESS
PC 1x3 1: 1 On completion of the module the student should be able to analyse Afrikaans and Dutch narrative and poetic texts using a theoretically-based reading strategy; to identify, describe and analyse the aesthetic and ideological aspects of Afrikaans and Dutch stories and poems; to identify, describe and analyse the domains of Afrikaans grammar.

ENTR221 CREATIVE ENTREPRENEURSHIP
PC / T 90 min 1:1 After successfully completing this module you should be able to demonstrate an understanding of the creative process; use applicable creative problem-solving techniques in generating ideas and solving problems; evaluate the environment and identify opportunities for creative application in all walks of life; reveal competencies in collecting and applying available information; display an understanding of the entrepreneurial mind; function idea-generating in teams; demonstrate a competent use of entrepreneurial language; develop an opportunity utilisation mindset; exhibit prioritising skills; analyse work place situations; and plan applicable solutions.

LLBR113 HISTORICAL FOUNDATIONS OF SOUTH AFRICAN LAW
PC 3 hours 1:1 On completion of this module you should understand the importance of the study of legal history and will be able to apply the external foundations of South African law as well as the internal foundations of the South African law of procedure, law of succession, public law, law of persons and the family to factual situations.

LLBR123 CONTEMPORARY FOUNDATIONS OF SA LAW
PC 3 hours 1:1 On completion of this module you should have insight in and be able to identify the internal foundations of the South African law of property, law of delict and law of contract and to apply it in given factual situations.

JURI 425 MINI-DISSERTATION
PC 3 hours 1:1 On completion of this module, the student should be able to demonstrate: • the ability to identify a viable research topic in any chosen field of law; • a coherent and critical understanding of



[Official stamp]

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the relevant and cognate fields of law covered by the mini-dissertation; • effective and appropriate independent research skills on the chosen topic, including the ability to select, retrieve and evaluate sufficient appropriate information and the ability to critically analyse and evaluate the information retrieved; • the ability to cogently critique and appreciate current research and scholarship in the area of specialisation and the ability to use theory-driven, well-structured and logical arguments to reach evidence-based solutions to the identified problem; and • the ability to effectively communicate and professionally present the results using appropriate language and correct terminology, conventions and bibliographical style applicable to legal academic writing.

JURP 411 SOCIO-ECONOMIC RIGHTS

PC 3 hours 1: 1 On completion of this module, the student should be able to demonstrate: • comprehensive and systematic knowledge of the different socio-economic rights in the Constitution; • a coherent and critical understanding of the principles and theories underlying socioeconomic rights; • efficient and effective information retrieval and processing skills to engage in current research fields of socio-economic rights; • an ability to identify, analyse and deal with complex and real-world problems and issues using the retrieved information in the formulation of evidence-based solutions from socioeconomic jurisprudence, individually and in groups; • an ability to present and communicate socio-economic rights research work effectively, ethically sound and value-driven.

JURP 421 LAND AND LAND REGISTRATION LAW

PC 3 hours 1: 1 On completion of this module, the student should be able to demonstrate: • a comprehensive and systematic knowledge of section 25 of the Constitution dealing with the: • history of land administration and land policy, • regulatory rules regarding the registration of land, sectional titles, share blocks and limited real rights to corporeal and incorporeal immovable property, • land reform programmes and legislation; and • a coherent and critical understanding of the principles, rules, theories, formats and conventions underpinning land reform, land registration and land control; • the problem analysis, research and information-retrieval skills related to problem solving in factual sets and legal issues; abilities to evaluate retrieved/gathered information and to integrate it coherently into evidence-based and theory-driven arguments/solutions; and • the ability to communicate solutions in writing and by computer to lay and academic-professional people, in an ethically sound and value-based manner.

NORTH-WEST UNIVERSITY
YUNIBESITHI YA BOKONE-BOPHIRIMA
NOORDWES-UNIVERSITEIT
POTCHEFSTROOMKAMPUS
Potchefstroomkampus (PUK)
Potchefstroom Campus

[Official stamp]

[Signed]
for Campus Director

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This is an example of a translation done from photocopied pages. The relevant page number appears below each subject.

*[**Translator's Note:** This is a partial translation of a document (pages B227 to B261). For ease of reference, the codes for the subjects have been retained as in the original document. Only the Afrikaans wording has been translated; the English wording has been reproduced. A blue stamp appears in English, Afrikaans and Setswana on each set of pages, bearing the words NORTH-WEST UNIVERSITY, Potchefstroom Campus]*

Calendar 1992

XXX 10677XXX *[handwritten]*

[The university logo appears here]

Faculty of Arts
PART II

■

POTCHEFSTROOM UNIVERSITY
FOR CHRISTIAN HIGHER EDUCATION

ENGLISH

ENG112: PRACTICAL ENGLISH
ENG122: PRACTICAL ENGLISH

B253

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GENERAL THEORY OF LANGUAGE AND LITERATURE

ATL 111: GENERAL THEORY OF LANGUAGE AND LITERATURE: LINGUISTICS

PC 3 hours 1:1

INTRODUCTION
Nature, goals and methods of General Theory of Language; origin of human language; characteristics of human language as communication medium; general similarities and differences among human languages; introduction to Sociolinguistics (forms and varieties of language, standard language, dialects, lingua francas, pidgins, creole languages, artificial languages); changes and variations in language; language families (genetic classification) and typology; introduction to Neurolinguistics (language and the human brain); introduction to Psycholinguistics (language development in the child); writing styles.

STRUCTURE OF LANGUAGE
A brief historical overview of linguistics. The phonetic system, vocabulary-building system, syntax system.

B241

INFORMATION SCIENCE

INL 111: INFORMATION SCIENCE: INFORMATION USE

PC 3 hours 1:1

Information as phenomenon. Information needs and information interests and their context. Use of information for studies and research. Techniques for information use: tracing of information, selection of different kinds of sources, processing of information from documentary as well as non-documentary sources, bibliographic referencing. Evaluation of information in processed form. Practical work.

B272

INL121: INFORMATION SCIENCE: BIBLIOGRAPHIC CONTROL

PC 3 hours 1:1

Scientific communication. Bibliographic control over document collections by means of bibliographic records and systematisation. Condensing of document content by means of excerpting.

B273

KOM121: COMMUNICATION: INTRODUCTION TO MASS COMMUNICATION

PC 3 hours 1:1

Introduction to the study of mass communication. Historical overview and development trends as they relate to journalism, publicity studies, liaison and audio-visual communication (television, radio and film).

B278

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G.P.-S. 003-00734 *J 353A*

CASE NUMBER :- XXX/99

IN THE SUPREME COURT OF SOUTH AFRICA (TRANSVAAL PROVINCIAL DIVISION)

PRETORIA, this the 23RD day of SEPTEMBER 1999

Before the Honourable Mr Justice VAN DER MERWE
Before the Honourable Madam Justice LEWIS (AJ)

IT APPEARING THAT

XXX

is duly qualified to practice and to be admitted as

ATTORNEY ***of this Court, it is hereby ordered that his/her***

name be enrolled as such by the proper officer.

By order of the Court.

[Signed]
Registrar

Enrolled same day.

[Signed]
Registrar

[Here appears an official embossed stamp.]

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G.P.-S

81/334997
(Z 947)

Magistrate's Ref. No: .....

Registrar's Reference Number ~~52/4~~ 12/4/6/2 -XXXX
[Handwritten number]

ORDER OF ADOPTION : REGULATION 21

REPUBLIC OF SOUTH AFRICA

IN THE CHILDREN'S COURT FOR THE DISTRICT .....

HELD AT .....

IN THE MATTER OF AN APPLICATION FOR THE ADOPTION OF

....., (full name of child)

identity number ..... on the ..... day of .....19.....

before ....., Commissioner of Child Welfare.

IT IS ORDERED THAT

..... (full name of child),

a ..... (sex) child, born on the ..... day of .....19.....,

be and is hereby adopted by..... (full name)

born on ....., identity number .....

*and his wife ....., (full name)

born on .....identity number ....., in terms of and subject to the provisions of the Child Care Act, 1983 (Act 74 of 1983).

It is further ordered that the family name .....*be given to the child/be retained by the child.

REGISTRAR OF ADOPTIONS
DEPT. OF HEALTH SERVICES AND WELFARE
PRIVATE BAG X730
1986 -10- 20
PRETORIA 0001

Given at ..... this ..... day of ..... 19..... at ..... (time).

[Illegible signature]
Commissioner of Child Welfare

1. Date of registration of adoption .....

2. Adoption register number .....

3. Amendment of the birth register in terms of section 25 or registration of the birth of the child in terms of section 26 of the Child Care Act, 1983 (Act 74 of 1983), may proceed.

..... Date

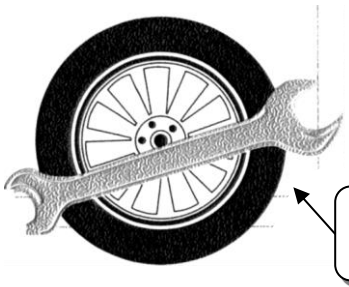
..... *Registrar of Adoptions*

* Delete whichever is not applicable.

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CONTRACT NO. XXX

[Official MITB logo.]



Or leave out the logo and simply state:
[Official logo of the Motor Industry Training Board.]

MOTOR INDUSTRY TRAINING BOARD

CONTRACT OF APPRENTICESHIP IN TERMS OF THE MANPOWER TRAINING ACT, 1981

THIS CONTRACT OF APPRENTICESHIP entered into by and between XXX LTD (85/02611/23) t/a XYZ MOTORS of (address) CHURCH STREET BRONKHORSTSPRUIT 1020 (hereinafter referred to as the Employer), on the one part, and JOHN DOE Identity number XXX born on the 21ST day of NOVEMBER (month) 1978 (hereinafter referred to as the Apprentice), assisted herein by his guardian (if applicable) J.A DOE of (address) PO BOX 000 RAYTON 1001 on the other part.

WITNESSETH:

1. THAT the Apprentice, having been found physically able and having obtained the ST. 9 TECHNICAL certificate, does of his/her own free will
(where legally required, with the consent of his/her guardian) by those present agree:-
   a) to honour his/her contractual obligations to the Employer in the trade of MOTOR MECHANIC designated in terms of Section 13(1) of the Manpower Training Act, 1981 (hereinafter referred to as the Act), in respect of the Motor Industry referred to in the Government Notice R1461 dated 16/08/1992 for the unexpired portion of the minimum period of 85 weeks and the maximum period of 208 weeks, in terms of Section 13(2) of the Act; with effect from the 1ST day of SEPTEMBER 1996

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b) undertake to adhere to all the relevant legislation as may apply;

c) not to disclose or communicate to any person whomsoever any information relating to the business of the Employer, other than in the ordinary course of his/her employment;

d) not to solicit or take orders for or undertake any work within the scope of the Motor Industry whether for gain or not;

e) to attend or undertake such classes, courses, examinations or tests as may be determined by the conditions of apprenticeship applicable to him/her ;

f) to keep weekly record of all training received from the Employer, ~~including completion of modules~~ in a log book an in accordance with conditions prescribed by the Motor Industry Training Board and a true copy of which shall be handed to the Employer for record purposes.

g) In terms of clause 8 (2) (c) of Government Notice R1461 dated 16 July 1982 the period of apprenticeship of an Apprentice, who has not passed a trade test before the end of his/her period of apprenticeship as prescribed in paragraph 1(a) of the contract, shall be extended by a period of 12 (twelve) months.

2. THAT the Employer does by those present agree:-

a) to train the Apprentice in accordance with his/her contractual obligations;

b) to remunerate the Apprentice at no less then the relevant wage rate, supplemented by allowance prescribed for skills and academic achievements;

c) to pay such fees in respect of technical instructions as he/she may be required to pay in terms of any notice under Section 13 of the Act;

d) to endorse and sign this contract on successful completion of the prescribed training programme and submit it to the regional office of the Motor Industry Training Board for termination. The Motor Industry Training Board shall forward the original to the Apprentice to be his/her property;

3. THAT it is further agreed between all parties to the contract that:-

a) after fair procedures had been followed and the Employer is satisfied that the Apprentice has committed a serious breach of terms of his/her contract or that the Apprentice conducted or is conducting himself/herself in an unseemly manner and contrary to good discipline and such conduct is not conducive to his/her training, the Employer's business or the attainment of the objects of the Act, whether during or outside his/her working hours or when attending classes or course or taking examinations in accordance with the conditions of apprenticeship during his/her stay in a hostel, if such stay related to his/her apprenticeship, the Employer may forthwith suspend the Apprentice for a period not exceeding the number of days which the Apprentice ordinarily works in a week and shall report the matter to the regional office in question of the Motor Industry Training Board for confirmation and approval, within 3 (three) days of the date on which he/she suspends the Apprentice;

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b) where, owing to a lack of work or an exigency in the Industry, short time is being worked by the Employer he/she may with the written approval of the Motor Industry Training Board, given after consultation with the regional office in question, employ the apprentice on short time for such periods and such conditions as may be stipulated by the Motor Industry Training Board.

IN WITNESS WHEREOF the contracting parties hereto have signed this contract on this

20TH day of FEBRUARY 19 97 *[Handwritten date]*

AS WITNESSES *[Illegible signature]*

1. *[Illegible signature]* M.P Vorster

2. *[Illegible signature]* G.D. Schoombee *[Illegible signature]* R Smith
EMPLOYER

1. *[Illegible signature]* M.P Vorster

2. *[Illegible signature]* G.D. Schoombee *[Illegible signature]* M.G. Green
GUARDIAN (If Apprentice is a minor]

1. *[Illegible signature]* M.R. van Rensburg

2. *[Illegible signature]* M.P Vorster *[Illegible signature]* J. Doe
APPRENTICE

[Handwritten names]

REGISTERED at the office of the Motor Industry Training Board on this the

day of MOTOR INDUSTRY TRAINING BOARD 19

1997 -03- 19

[Official date stamp.]

[Signed]
GENERAL MANAGER: MOTOR INDUSTRY TRAINING BOARD

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COMPLETION

This is to certify that the Apprentice John Doe

_____, has completed all prescribed training and

~~successfully completed~~ the prescribed modules and tests in the trade of Motor Mechanic

DATE OF COMPLETION 20 day of May (month) 19 99

[Handwritten entries]

Contract amended in terms of sec. 25(1) of the Manpower Training Act, 1981.

[Signed]
MOTOR INDUSTRY TRAINING BOARD

Date 5 November 1999

[Signed]

EMPLOYER

QUALIFICATION NOTED

MOTOR INDUSTRY TRAINING BOARD

1999 -11- 05

_____ 19____

[Official date stamp]

[Signed]

GENERAL MANAGER : MOTOR INDUSTRY TRAINING BOARD

CANCELLATION

NOTE:- No contract of apprenticeship shall be rescinded, except:-

(a) with the consent of the Motor Industry Training Board, by agreement of the parties thereto; or

(b) by the Motor Industry Training Board on its own initiative, after consultation with the committee in question, or at the instance of any party thereto, if it is satisfied that it is expedient to do so.

MARVIC 10323

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I certify that revenue stamps to the value of R10,00 have been affixed onto the original hereof and is currently filed in my protocol.

[Signed]

JAMES BOND
NOTARY PUBLIC

[Two revenue stamps to the value of R10,00, initialled and dated 05/01/95.]

STAMP DUTY R 40c

FEES R 15,00

REGISTERED

[Signature.]
REGISTRAR
1995-01-05

PROTOCOL NO: *[Illegible]*

H 023 /945
JOHANNESBURG

ANTENUPTIAL CONTRACT
with the
APPLICATION OF THE ACCRUAL SYSTEM
in terms of the
MATRIMONIAL PROPERTY ACT, 1984

BE IT HEREBY MADE KNOWN

THAT on this 28TH day of **DECEMBER 1994**,

before me, **JAMES BOND,** Notary, practising at **ROODEPOORT** in the Province **TRANSVAAL** appeared **MARY POPPINS** duly authorised thereto under a Special Power of Attorney signed at **ROODEPOORT** on the **5**th day of **DECEMBER 1994** and granted to her by:-

[Four sets of initials]

JOHN DOE (Identity No. XXX), unmarried,
residing at Roodepoort
and
JANE ANNE DOE (Identity No. XXX), unmarried,
residing at Roodepoort,

which Special Power of Attorney was shown to me and is currently filed in my Protocol.

AND the Appearers declared that whereas a marriage has been agreed upon and is intended to be solemnised between them, they have agreed and now contract with each other as follows**:**

1. That there shall be no community of property between them;

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2. That there shall be no community of profit and loss between them;

3. That the marriage shall be subject to the accrual system in terms of the provisions of Chapter 1 of the Matrimonial Property Act, 1984 (Act No. 88 of 1984).

4. That for the purpose of proof of the net value of their respective estates at the commencement of the intended marriage the intended spouses declared the net value of their respective estates to be as follows:
   4.1 that of **JOHN DOE** : NIL
   4.2 that of **JANE ANNE DOE** : NIL

5. THAT the assets of the parties or either of them, which are listed hereunder, with net values shown, and all liabilities associated therewith, or any other asset acquired by such party by virtue of his possession or former possession of such assets, shall not be taken into account as part of such party's estate at either the commencement or the dissolution of the marriage.

5.1. The assets of the **JOHN DOE** so to be excluded, are:

5.1.1	Momentum Life Policy	R6 000.00

5.2. The assets of the **JANE ANNE DOE** so to be excluded, are:

5.2.1	1993 Volkswagen Golf, Shuttle	R20 000.00

THUS DONE AND EXECUTED at ROODEPOORT aforesaid, on the day, month and year first aforewritten in the presence of the undersigned witnesses.

AS WITNESSES:

1. *[Signed]* *[Signed]*

q.q. J DOE

2. *[Signed]* *[Signed]*

q.q. JA DOE

QUOD ATTESTOR

[Signed]

NOTARY

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Protocol No XXX

ANTENUPTIAL CONTRACT WITH APPLICATION OF THE ACCRUAL SYSTEM

BE IT HEREBY MADE KNOWN

THAT on this 7th day of OCTOBER in the year TWO THOUSAND AND SIX before me,

JAMES BOND

notary, sworn and admitted according to law and residing and practising in PRETORIA, PROVINCE GAUTENG, Republic of South Africa, and in the presence of the subscribing witnesses, personally appeared

JOHN DOE
Identity Number : XXX
Unmarried

and

JANE ANNE DOE
Identity Number : XXX
Unmarried

AND the Appearers declared that his said principals, the said JOHN DOE and JANE ANNE DOE intend to enter into the state of marriage with each other and that they arrange their marriage, which will soon be solemnised, through the following provisions, namely:

1. Notwithstanding anything to the contrary in any conflict of law rules contained and subject to the terms of this agreement the proprietary consequences of their intended marriage and the construction and interpretation of this agreement shall be governed by and regulated in accordance with the laws of the Republic of South Africa;

2 There shall be no community of property and no community of profit and loss between them in respect of their marriage;

3 Neither party shall be liable for any debt or obligation incurred by the other party before or during the subsistence of their intended marriage;

4 The accrual system referred to in Chapter 1 of the Matrimonial Property Act 88 of 1984 (“the Act”), but excluding any amendments thereof, shall apply to their intended marriage, in that:

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4.1 On the dissolution of the marriage by divorce or by the death of either or both of the parties, the party whose estate shows no accrual or a smaller accrual than the estate of the other, or in the case of the death of the first-mentioned party, his or her executor, shall have a claim against the other party or his or her estate for an amount equal to one half of the difference between the accruals of the respective estates of the parties;

4.2 The abovementioned claim shall vest on the dissolution of the marriage and shall not during the subsistence of the marriage be transferable or liable to attachment or form part of the insolvent estate of either party;

4.3 The accrual of the estate of each party is the amount by which the net value of his or her estate at the dissolution of the marriage exceeds the net value of the estate at the commencement of the marriage;

4.4 Notwithstanding anything to the contrary herein contained, in determining the accrual of each party's estate:

4.4.1 Any inheritances, legacies and donations which may accrue to either party during the subsistence of their marriage and all assets which either party may acquire by virtue of his or her possession or former possession of such inheritances, legacies or donations and income derived therefrom shall be excluded from the accrual of the estate of such party;

4.4.2 Donations by either party to the other, other than donations in contemplation of death, shall not be taken into account either as part of the estate of the donor or as part of the estate of the beneficiary;

4.4.3 Any amount which shall have accrued to either party's estate by way of damages other than damages for patrimonial loss shall be left out of account;

4.4.4 The net value of the estate of each party at the commencement of their marriage shall be calculated with due allowance for any difference in the value of money which may exist at the commencement and the dissolution of their intended marriage and for this purpose the weighted average of the consumer price index as published from time to time in the *Government Gazette* of the Republic of South Africa or any index published in substitution therefor shall serve as prima facie proof of any change in the value of money;

4.4.5 The accrual of the estate of a deceased party is determined before effect is given to any testamentary disposals, donations in contemplation of death or succession pursuant to any laws of intestacy;

4.4.6 The parties agree not to make any donations, except donations which are reasonable gifts on festive occasions to family members, without the written consent of the other party and that the value as arithmetically adjusted of any donation made without the written consent of the other party shall be added to the net value of the estate of the party who made the donation, when calculating the net values of the estates of the respective parties on dissolution of the marriage.

4.4.7 Should either party be an unrehabilitated insolvent on the dissolution of the marriage, then the accrual system as set out above shall not apply and on the dissolution of the marriage each party shall be entitled to his or her own estate and effects only.

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4.4.8 The parties declare the net value of their respective estates at the commencement of their intended marriage to be:

JOHN DOE

R nil

JANE DOE

R nil

In determining the accrual of the Estate of the said JOHN DOE, the value of the following assets has been excluded from the commencement value and shall be excluded from the end value of the Estate of the said JOHN DOE;

[Specify]

Upon which conditions and stipulations the Appearer declared that the parties respectively promise and agree to solemnise their said intended marriage, mutually promising to allow to each other the full force and effect hereof under obligation of their persons and property according to law.

SIGNED at PRETORIA on the day, month and year first aforewritten in the presence of the subscribing witnesses and of me, the Notary.

As witnesses:

1 *[Signed]* _____ *[Signed]* _____
JOHN DOE

2 *[Signed]* _____ *[Signed]* _____
JANE DOE

QUAD ATTESTOR

[Signed] _____
NOTARY

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CANADIAN 85134 TRANSLATOR AFFIDAVIT

IN THE MATTER OF
a translation of a document
from the_____language
into the _____ language

I, _____, of the City of _____ in the Province of_____, do solemnly declare that:

1. I am sufficiently proficient in the_____ language and can read, write and understand the same.

2. I gained my understanding of the_____language from _____
_____
_____
_____
_____
_____

3. I have read the documents affixed hereto and marked Exhibit "A" to this, my declaration, which are written in the _____ language and I have read over the translated documents which are written in the _____ language, which are marked Exhibit "B" to this my Declaration and I declare that the contents of the documents are the same as the contents of the _____ documents.

4. I make this Affidavit for the purpose of declaring that the _____ translations of these documents are faithful translations from the _____language.

AND I make this solemn Declaration conscientiously believing it to be true, and knowing it is of the same force and effect as if made under oath, and by virtue of the Canada Evidence Act.

DECLARED before me at the City of }
_____ in the Province of }
and Country of **SOUTH AFRICA** } _____
this_____day of } (Signature of Translator)
A.D. 20

_____
A Notary Public in and for the
Province/State/Country of _____

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I

I certify that this document is a true reproduction of an original which was examined by me and that, from my observations, the original has not been altered in any manner.

Johannesburg the _____ day of _____ 20__

_____

JOHN DOE – SWORN TRANSLATOR PO Box XXX, Parktown, 2193

I hereby certify that this document is a true copy of the original to which no visible alterations have been effected.

(signature above full name)

Signed at ...(place)..... on .... (date)...

MRS JANE DOE
Sworn translator in the Afrikaans and English languages Duly admitted by order of the High Court of South Africa (Gauteng Division)
No. XXXX/97
Ex Officio Commissioner of Oaths

Certified a true copy of the original document. There is no indication that the original document has been amended by unauthorised persons.

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[TBI]SWORN
TRANSLATOR OF THE
HIGH COURT OF NAMIBIA
ENGLISH–GERMAN

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Ek sertifiseer hiermee dat hierdie dokument 'n ware vertaling van die oorspronklike dokument / 'n gesertifiseerde kopie van die oorspronklike dokument is.

I hereby certify that this document is an accurate translation of the original document / of a certified copy of the original document.

Wilna Marais MA (Toegepaste Linguistiek/Applied Linguistics)
SAVI Geakkrediteerde Beëdigde Vertaler van die Hoë Hof van SA, Kaapstad Provinsiale Afdeling, en *ex officio* Kommissaris van Eede

SATI Accredited Sworn Translator of the High Court of SA, Cape Town Provincial Division, and *ex officio* Commissioner of Oaths

Datum/Date:…….. .....
Registration No. 65432/91

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Certified a true translation of the original French
document .....[Signature].....

•••••••••••••••

Certified a true translation of a certified photocopy of the original Afrikaans document ...[Signature].....

•••••••••••••••

I, XXX, Sworn Translator N° XXX/53, duly admitted by the High Court of South Africa, Cape Town, Local Division, do hereby declare that the above is a correct translation of the attached document, from the Spanish to the English language. Cape Town, 23 July 2018.

.....[Signature].....

•••••••••••••••

I hereby certify that this document is an accurate translation of the original document / a certified copy of the original document.
XXX MA (Applied Linguistics)
SATI Accredited Sworn Translator of the High Court of SA, Cape Town Provincial Division, and *ex officio* Commissioner of Oaths

.....[Signature].....

•••••••••••••••

I, XXX, sworn translator for the German and English languages, herewith certify that to the best of my knowledge this is a true and accurate translation of the above original document from the German into the English language.
Signed and dated at Port Elizabeth this .....day of 2004

.....[Signature].....

•••••••••••••••

I, the undersigned XXX, Sworn Translator of the High Court of Namibia for English,
German and Afrikaans, do hereby certify and attest the aforegoing to be a true and correct translation from the Afrikaans into the English language to the best of my knowledge and belief.
(from original / certified copy / fax)

.....[Signature].....

•••••••••••••••

© South African Translators' Institute 2020

I, the undersigned, Mrs Jane Doe, certify that this document is a true and accurate translation from Afrikaans into English of a certified copy of the original certificate.

_____ at _____ on _____

MRS JANE DOE
Sworn translator in the Afrikaans and English languages
Duly admitted by order of the High Court of South Africa
(Gauteng Provincial Division) No. 123456/97
221 Dawson Street, Mucklneuk, Pretoria 0002
Ex officio Commissioner of Oaths

••••••••••••••••

I, Mr XXX, a Sworn Translator of the High Court of South Africa since 1992, case number XXX, from the Russian language into the English language , hereby certify that the document which has been translated by me from the Russian language into the English language and which is attached hereto is to the best of my knowledge and ability a true and correct translation of the original document.
Signed at Johannesburg on this 15th day of July 2019.

.....[Signature].....

••••••••••••••••

I, XXX, Sworn Arabic Translator of the High Court of South Africa (Gauteng Local Division), hereby declare that, to the best of my knowledge and ability, this is a true and accurate translation of the attached copy of the Arabic original.
Polokwane, 13 May 2019
.....[Signature].....

© South African Translators' Institute 2020

[Letterhead]

TO WHOM IT MAY CONCERN
TRANSLATION OF DOCUMENTS FOR
XXX BROKERS (PTY) LTD

I, the undersigned, XXX, duly admitted by the High Court of South Africa (Gauteng Provincial Division) as a sworn translator in the Afrikaans and English languages (Registration No. XXX/91), as well as being a member of the South African Translators' Institute (membership number 10000001) accredited for Afrikaans to English translation, hereby certify that the contents of the attached documents set out hereunder, namely

1. Cover page (1 page),
2. Certification by Notary Public, CZ XXXX (1 page),
3. Certificate of Incorporation, Form CM 1(1 page),
4. Contents of Register of Directors, Auditors and Officers, Form CM29 (3 pages),
5. Memorandum of Association, Form CM2 (4 pages),
6. Statutes of a [private] company with share capital, Form CM 44 (3 pages),
7. Statutes of a [public] company with share capital, Form CM 44 (1 page),
8. Special resolution on 4 May 19XX, Form CM 26 (1 page),
9. Amended certificate of incorporation, Form CM 45 (1 page),
10. Special resolution on 10 April 19XX and attached Schedule Form CM 45 (2 pages) and 11. Certificate to commence business, Form CM 46 (1 page),

pertaining to XXXX Brokers (Proprietary) Limited and its conversion to a public company, namely XXXX Brokers Limited, comprising a total of 18 pages which I have translated, certified and signed, are, to the best of my knowledge and belief, a true and correct translation, from Afrikaans into English, done from certified copies of the original documents.

Thus done and signed at Pretoria on this 11th day of July 2003.

Mrs Jane Doe
Sworn Translator

© South African Translators' Institute 2020

[Letterhead]

2020-03-02

I, XXX, currently residing at XXX, Pretoria, Gauteng Province, Republic of South Africa, hereby declare that:

- I have been admitted and enrolled as sworn translator by the High Court of South Africa, North Gauteng High Court, on 8 December 2011 (Case No. XXX/11), for the language combinations Afrikaans to English and English to Afrikaans.
- I have been an accredited member of good standing of the South African Translators' Institute since 2011, having been accredited for sworn translation from Afrikaans to English.
- I have been a member of Prolingua, an Association for English and Afrikaans Language Practitioners, since 2015.
- I hold the following degrees:
  - BA (Communication), University of Pretoria,
  - BA (Hons), University of Pretoria.
- I hold an appointment as Commissioner of Oaths (*ex officio*) for the Republic of South Africa.

I also declare:

- the accompanying documents, *viz*:
  - ***Last Will and Testament of John Doe and Jane Doe dated 22 August 2014;***
  - ***Final Order of Divorce granted to John Doe and Jane Doe by the North Gauteng High Court on 16 April 2019;***

  to be true and accurate translations of the original Afrikaans documents, and that
- I translated the above documents at the request of:

XYZ ATTORNEYS, BLOEMFONTEIN

Yours faithfully

JANE DOE
SWORN TRANSLATOR

© South African Translators' Institute 2020

[Letterhead]

TO WHOM IT MAY CONCERN

I, the undersigned, XXX, ID number XXX, of the above address, hereby declare that I am a sworn translator admitted by the High Court of South Africa, Cape Town Provincial Division, accredited by the South African Translators' Institute, and ex officio Commissioner of Oaths.

Qualification: MA (Applied Linguistics) from the Rand Afrikaans University, currently the University of Johannesburg.

Registration number as worn translator; XXX/99

I hereby certify that I have provided a true translation of the **selection of transcripts in the matter of XXX and others**. The translation has been done from an electronic copy. I have no perused the original documents. The translation was done as instructed by XXX on behalf of XXX.

JANE DOE
SWORN TRANSLATOR

© South African Translators' Institute 2020

University of South Africa

We certify that

John Doe

having complied with the regulations and the requirements of the Statute, was issued with the

POSTGRADUATE DIPLOMA IN ACCOUNTING

at a congregation of the University

on 22 May 2000

[Signed]
Vice-Chancellor

[Signed]
Dean

[Signed]
Registrar

PRETORIA

[Official seal of the University of South Africa.]

© South African Translators' Institute 2020

[Official coat of arms of the University of Pretoria.]

University of Pretoria

The Council and the Senate hereby declare that at
a congregation of the University the degree

Baccalaureus Commercii Honores

with specialisation in
Accounting Sciences

with all the associated rights and privileges
was conferred upon

XXX

in terms of the Act and Statute of the University

On behalf of the Council and Senate

[Signed]

Vice-Chancellor and Principal

On behalf of the Faculty of
Economic and Management Sciences

[Signed]

Dean

Note: University of Pretoria uses "Principal" not "Rector".

[Signed]

Registrar

1995-12-06

[Official seal of the University of Pretoria.]

© South African Translators' Institute 2020

[Here appears the logo of the North-West University.]

NORTH-WEST UNIVERSITY

BACHELOR OF COMMERCE

in

INTERNATIONAL TRADE AND MARKETING

awarded to

XXX

after complying with all the requirements

[Signed]

Vice-Chancellor

5 March 2009

[Signed]

Registrar

[Here appears the official seal of the North-West University.]

University Number: 200XXXXX
Serial Number: 25XXX

The University of Stellenbosch

It is hereby certified that whereas

XXX

has complied with all the conditions for the Magister degree course in Business Management and Administration, as prescribed in Act No. 37 of 1959 and the Statute and Regulations of the University, the degree

Magister in Business Management and Administration (M.B.A.)

with all the rights and privileges pertaining thereto, was conferred on *HIM* ***at a Congregation of the University on*** *14 MARCH 1985.*

[Signed]
RECTOR

[Official seal of the University of Stellenbosch.]

[Signed]
REGISTRAR

Stellenbosch

14 MARCH 1985

THE UNIVERSITY OF THE ORANGE FREE STATE

[Official coat of arms of the University of the Orange Free State.]

This is to certify that the degree

Baccalaureus in Medicine (M.B.)
and
Baccalaureus in Surgery (Ch.B.)

has been conferred upon

XXX

in accordance with the statutes and regulations of the University. As witness our respective signatures and the seal of the University below.

[Signed]
Vice-Chancellor

[Signed]
Dean

[Signed]
Director: Student Administration

[Official seal of the University of the Orange Free State.]

30 November 1994
Bloemfontein

[Official coat of arms of Potchefstroom University for Christian Higher Education.]



Potchefstroom University

for Christian Higher Education

BACCALAUREUS COMMERCII

Awarded to

**** XXX ****

after complying with all the requirements

16 March 1995

[Signed]
Vice-Chancellor and Rector



[Official seal.]

[Signed]
Registrar

The University of the Orange Free State

[Official coat of arms of the University of the Orange Free State.]



This is to certify that the degree

Baccalaureus Societatis Scientiae

I CERTIFY THAT THIS DOCUMENT IS A TRUE REPRODUCTION OF THE ORIGINAL DOCUMENT WHICH WAS EXAMINED BY ME AND THAT, FROM MY OBSERVATION THE ORIGINAL HAS NOT BEEN ALTERED IN ANY MANNER
72149426
[Signed]
SIGNATURE

has been conferred upon

XXX

in the year 1980

after complying with the statutes and regulations of the University.

SOUTH AFRICAN POLICE SERVICE
COMMUNITY SERVICE CENTRE
13 MAY 2019
SOMERSET WEST

[Signed]
Vice-Chancellor

[Signed]
Dean

[Signed]
Registrar Academic

[Official seal embossed into the document.]

Bloemfontein

26 MARCH 1981

UNIVERSITEIT VAN DIE VRYSTAAT



UNIVERSITY OF THE FREE STATE

HIERMEE WORD VERKLAAR DAT DIE GRAAD THIS IS TO CERTIFY THAT THE DEGREE

Baccalaureus Commercii (Bemarking)
Baccalaureus Commercii (Marketing)

TOEGEKEN IS AAN
HAS BEEN CONFERRED UPON

XXX

NADAT AAN DIE STATUTE EN REGULASIES VAN DIE UNIVERSITEIT VOLDOEN IS, AS BEWYS DAARVAN PLAAS ONS ONS ONDERSKEIE HANDTEKENINGE EN DIE SEëL VAN DIE UNIVERSITEIT HIERONDER.

IN ACCORDANCE WITH THE STATUTES AND REGULATIONS OF THE UNIVERSITY, AS WITNESS OUR RESPECTIVE SIGNATURES AND THE SEAL OF THE UNIVERSITY BELOW.

VISE-KANSELIER/VICE-CHANCELLOR



DEKAAN/DEAN

BLOEMFONTEIN
2005-04-22
2002008429

REGISTRATEUR/REGISTRAR

[Here appears the official coat of arms of the University of South Africa.]

UNISA
UNIVERSITY OF SOUTH AFRICA

We certify that

Xxx

having complied with the Higher Education Act and the Institutional Statute, was issued with the

POSTGRADUATE CERTIFICATE IN EDUCATION (SENIOR PHASE AND FURTHER EDUCATION AND TRAINING)

at a congregation of the University on 26 April 2006

[Signed]

Vice-Chancellor

[Signed]

Registrar (Academic)

[Official seal of the University of South Africa.]

[Signed]

Executive Dean

[Official coat of arms of the College of Education Pretoria.]

COLLEGE OF EDUCATION PRETORIA

(As amalgamated with the Goudstad College of Education on 1993-01-01)

HIGHER EDUCATION DIPLOMA

Four-year training in

SENIOR PRIMARY EDUCATION

awarded to

XXX
224BXXXX

COURSES PASSED

CURRICULUM COURSES
- Geography
- Afrikaans
- Bible Education
- English
- History
- *Health Education
- Natural Science
- Mathematics
- Educational Resources – *include School Librarianship, Writing and Chalkboard Technique Audiovisual Education, Micro Teaching and Computer Literacy*

ACADEMIC COURSES
- Pedagogics I & II - *Include School Guidance and School Organisation*
- ENGLISH IB
- AFRIKAANS I & II
- BIBLICAL STUDIES I & II

SPECIALISATION SUBJECT
- SCHOOL MEDIA CENTRE STUDIES I & II

TEACHING PRACTICE (16 weeks)

[Signed]
REGISTRAR
UNIVERSITY OF PRETORIA

[Signed]
RECTOR
COLLEGE OF EDUCATION PRETORIA

[Official embossed seal.]

Language Endorsement A/E
Issued with effect from 1 DECEMBER 1994

** With distinction*
The explanation of the language endorsement appears on the reverse side of this diploma.
This diploma is issued without alteration or erasure of any kind.

ISSUED IN ASSOCIATION WITH
THE UNIVERSITY OF PRETORIA.

DEGREES
DIPLOMAS
CERTIFICATES

Tshwane University of Technology

We empower people

NATIONAL DIPLOMA

MEDICAL ORTHOTICS AND PROSTHETICS

Awarded to

XXX

20401XXXX 1985-03-06

Having complied with the
Requirements of the Act and Statute

2006-12-01

ND11111

[Signed]
Vice-Chancellor and Principal
On behalf of Council and Senate

[Signed]
Registrar

Tshwane University of Technology, formerly known as Technikon North-West, Technikon Northern Gauteng or Technikon Pretoria.

DEGREES
DIPLOMAS
CERTIFICATES
VR-E 503

REPUBLIC OF SOUTH AFRICA



[Official coat of arms of the Republic of South Africa.]

No. **103XXX**

ADMINISTRATION: HOUSE OF REPRESENTATIVES
DEPARTMENT OF EDUCATION AND CULTURE

Diploma in Education

Senior Primary

GRADE

SECOND

AWARDED TO

XXX

BORN

08 JUNE 1968

SUBJECTS PASSED

(after three years' training)

AFRIKAANS FIRST LANGUAGE
ENGLISH SECOND LANGUAGE
MATHEMATICS
GEOGRAPHY
PEDAGOGICS
CLASSROOM EDUCATION
EDUCATIONAL RESOURCES
SPEECH EDUCATION

LANGUAGE ENDORSEMENT **AE**
(Key to symbols on reverse side)

[Signed in blue ink]
Examinations Officer

[Signed in blue ink]
Executive Director: Education and Culture

Date of examination **NOVEMBER 1989**

This diploma is issued without any erasures or alterations

G.P.-S. 040-0467

DEGREES
DIPLOMAS
CERTIFICATES

CENTURION [Coat of arms of Centurion Academy] ACADEMY

Advanced Diploma

awarded to

XXX

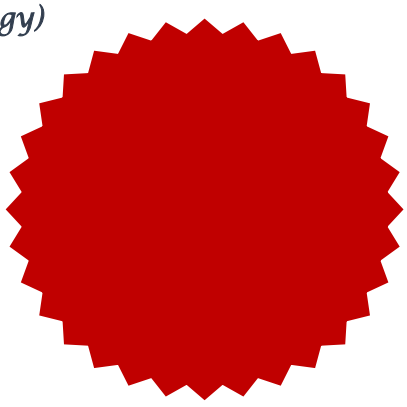
ID: XXX

for the successful completion
of the course in

Somatology

(Advanced Diploma in Somatology)

[Official seal.]



No: OD 03XX *[Signed]* *[Signed]*

Date: *13 March 2009* Executive Principal Head of Faculty

Registered by the Department of Education: 01HB03

Metal and Engineering Industries Education and Training Board

[Official logo of the Metal and Engineering Industries Education and Training Board.]



Incorporated in the MERSETA

Manpower Training Act, 1981 (12B)

It is hereby certified that

XXX

XXX 5193 083

identity document number

passed a trade test in the trade

BOILERMAKER (WITH DISTINCTION)

in accordance with the provisions of

SECTION 13

of the Manpower Training Act, 1981

[Signed]
*Manager **MEIETB***

[Signed]
Registrar of Manpower Training

[Official red MEIETB seal.]

Number **9/07/13XXX**

Date tested **2000-03-24**

Date of issue **2000-04-07**

EXAKTA

27899/0131

TRANSVAAL

EDUCATION DEPARTMENT



[Official coat of arms of the Transvaal Education Department.

THIS IS TO CERTIFY THAT

XXX,XXX

IDENTITY NUMBER 711220 XXXX XXX

SATISFIED ALL THE EXAMINATION REQUIREMENTS FOR THE

SENIOR CERTIFICATE

FIELD OF STUDY GENERAL

SUBJECTS PASSED	***GRADE***	***SYMBOL***
AFRIKAANS FIRST LANGUAGE	HG	D
ENGLISH SECOND LANGUAGE	HG	D
MATHEMATICS	HG	C
PHYSICAL SCIENCE	HG	C
GEOGRAPHY	HG	D
ACCOUNTING	HG	D

[Stamped signature in blue ink]
EXECUTIVE DIRECTOR: EDUCATION

DATE OF ISSUE 1991.01.01

THIS CANDIDATE IS EXEMPTED WITH EFFECT FROM 1991.01.01 FROM THE MATRICULATION EXAMINATION OF THE UNIVERSITIES ESTABLISHED BY ACTS OF PARLIAMENT IN THE REPUBLIC OF SOUTH AFRICA.

[Signed]
SECRETARY

JOINT MATRICULATION BOARD

VALUE OF SYMBOLS

A. 80% - 100%
B. 70 - 79%
C. 60 - 69%
D. 50% - 59%
E. 40 - 49%
F. $33^{1}/_{3}$% - 39%

HG - HIGHER GRADE SG - STANDARD GRADE LG - LOWER GRADE

This certificate is issued without alteration or erasure of any kind.

G.P.-S. 003-0247 J 611

Case No 1001/90 19___

FINAL ORDER OF DIVORCE

IN THE SUPREME COURT OF SOUTH AFRICA,

TRANSVAAL PROVINCIAL **DIVISION**

At PRETORIA on the 9th day of MARCH ~~19~~ 1990.

Before the Honourable Mr Justice ROOS (AJ)

In the matter between

JANE ANNE DOE Plaintiff,
born SMITH)
ID. XXX

and

JOHN DOE Defendant.
ID. XXX

Having heard Mr

counsel for the plaintiff, and having read the documents filed of record,

IT IS ORDERED

That the bonds of marriage subsisting between plaintiff and defendant be and are hereby dissolved.

THAT the agreement between the parties, filed of record and marked "B"

be and is hereby made an order of this Court.

BY ORDER OF THE COURT.

[Signed]

69 SHAPIRO

Registrar

/er



[Coat of arms of the Republic of South Africa.]

REPUBLIC OF SOUTH AFRICA

Case No: GP/PTA/RC/0000/2017

FINAL ORDER OF DIVORCE

IN THE **REGIONAL DIVISION OF GAUTENG**

HELD AT **PRETORIA**

ON THE **4th** **DAY OF** **AUGUST** **2017**

BEFORE **K.H BOSCH** **PRESIDING OFFICER**

IN THE MATTER BETWEEN

DOE née BOND: JANE
IDENTITY NUMBER: xxxx **PLAINTIFF**

AND

DOE: JOHN
IDENTITY NUMBER xxxx **DEFENDANT**

Having heard the Plaintiff and having read the relevant documents, and/or having heard the evidence *viva voce;*

IT IS ORDERED

1. **That the bonds of marriage between the Plaintiff and the Defendant be and are hereby dissolved.**

2. That the Settlement Agreement between the parties, filed and marked "B" be hereby made an order of the Court.

By order of the Court.

REGIONAL COURT PRETORIA
2017 -08- 14
MR. E.M. MATHEKGA
ASSISTANT REGISTRAR

[Official date stamp.]

[Signed]
REGISTRAR

[Official coat of arms.]



DEPARTMENT OF JUSTICE AND CONSTITUTIONAL DEVELOPMENT

REPUBLIC OF SOUTH AFRICA

FINAL ORDER OF DIVORCE

CASE No. Div XXX/2010

IN THE **HIGH COURT OF SOUTH AFRICA, NORTH WEST HIGH COURT**

AT **MAFIKENG** ON THE **XXrd** DAY OF **AUGUST** 20**10**

BEFORE THE HONOURABLE MR JUSTICE GURA

IN THE MATTER BETWEEN

XXX **PLAINTIFF**

(born XXX)

(Identity number: **XXX)**

AND

XXX **DEFENDANT**

Identity number: **XXX)**

Having heard **ADV DOE**

Counsel/Attorney for the Plaintiff, and having read the documents filed of record, and/or heard the evidence *viva voce*;

IT IS ORDERED

That the bonds of marriage between the plaintiff and defendant be and are hereby dissolved.

THAT: An order of divorce incorporating the terms of the Settlement Agreement.

By order of the Court

[Signed]

CERTIFIED A TRUE COPY OF THE ORIGINAL

DATE: 17 December 2019

PLACE: Hartbeespoort

REGISTRAR *[Signed]*

REGISTRAR OF HIGH COURT
NORTH WEST HIGH COURT
MAFIKENG

COMMISSIONER OF OATHS
Jane Doe
ATTORNEY

IN THE SUPREME COURT OF SOUTH AFRICA
(TRANSVAAL PROVINCIAL DIVISION)

CASE NUMBER

In the matter between

JANE ANNE DOE
(born Smith – formerly Brown),
formerly Calitz

Plaintiff

and

JOHN DOE

Defendant

SETTLEMENT AGREEMENT

WHEREAS the Plaintiff instituted action proceedings against the Defendant in above Honourable Court ;

AND WHEREAS the parties confirm that the marriage relationship between the parties has irretrievably broken down and cannot be continued successfully ;

AND WHEREAS the parties desire to settle the action on certain terms and conditions subject to the approval of the above Honourable Court and subject to the specific condition that the Plaintiff shall proceed with obtaining the divorce order on a undefended basis :

NOW THEREFORE THE PARTIES AGREE AS FOLLOWS:

1.

Plaintiff waives her claim for maintenance for herself altogether.

2.

Plaintiff retains as her exclusive property the 1982 Mazda 323 motor vehicle and undertakes to have the vehicle registered in a roadworthy condition in her name at her own costs.

3.

Plaintiff shall keep as her exclusive property all the furniture and household effects that she owned before the conclusion of the marriage of the parties

[Initialled by five persons]

/ 2.....

together with the following :

(a) Two Lazyboy chairs ;

(b) One washing machine purchased on hire purchase by the Plaintiff. Plaintiff undertakes to pay the instalments on the washing machine herself;

(c) Plaintiff's sewing machine and knitting machine that the Defendant gave her as gifts ;

(d) Plaintiff's personal belongings such as jewellery and clothes ;

The remainder of the assets making up the joint estate shall become the exclusive property of the Defendant. IT IS PUT ON RECORD THAT PLAINTIFF HAS ALREADY TAKEN POSSESSION OF ALL THE ABOVEMENTIONED ASSETS.

[Initialled by six persons.]

4.

Defendant undertakes to contribute an amount of ~~R 800-00 (EI~~600.00 SIX ~~GHT~~ HUNDRED RAND) to Plaintiff's action.

5.

Each party shall personally pay those debts incurred by him or her during the existence of the marriage.

6.

Upon signature of this agreement, except as set out above, the parties shall have no further claims of any kind whatsoever, against each other.

SIGNED at PRETORIA on this the 10th day of JANUARY, 1990.

AS WITNESSES

1 *[Signed]*

2 _____ [Signed]

PLAINTIFF

SIGNED at PRETORIA on this the 12th day of JANUARY, 1990.

AS WITNESSES

1 *[Signed]*

2 _____ [Signed]

DEFENDANT

IN THE HIGH COURT OF SOUTH ARICA

(NORTH GAUTENG HIGH COURT, PRETORIA)

CASE NUMBER: XXX/13

In the matter between:

NOTED/SEE ENDORSEMENT
Contact inquiry recommended by Family Advocate.
FAMILY ADVOCATE
TPA
[Signed]
17/10/2013

JANE DOE **PLAINTIFF**

ID: XXX

AND

JOHN DOE **DEFENDANT**

ID: XXX

THE DEPARTMENT OF JUSTICE
& CONSTITUTIONAL DEVELOPMENT.
OFFICE OF THE FAMILY ADVOCATE
2013 -10- 17
P/BAG X 88, PRETORIA, 0001
TEL: 012 323 0760 FAX: 012 326 4633

SETTLEMENT AGREEMENT

WHEREAS The Plaintiff intends to have a subpoena issued against the Defendant in which an Order of Divorce and related orders are requested;

WHEREAS The parties agree that the marital relationship has broken down irretrievably;

WHEREAS The parties are desirous of concluding a settlement agreement.

NOW THEREFORE THE PARTIES AGREE AS FOLLOWS:

1.

The Plaintiff shall proceed with the Divorce Action that she intends to institute against the Defendant and shall obtain a final Order of Divorce incorporating this Agreement, if it pleases the Honourable Court.

2.

MINOR CHILD:

2.1 Both parties retain their full parental responsibilities and rights in respect of the custody of the minor child, XXX born on 11 July 2011 (currently 2 years 2 months) as provided in Section 18(2)(a) of the Children's Act , No. 38 of 2005.

2.2 That the primary residency of the minor child is awarded to the Plaintiff subject to the Defendant's right to reasonable access.

2.3 The specific parental responsibilities and rights in respect of the Defendant's contact with the minor child as contemplated in Section

18(2)(b) of the Children's Act, No. 38 of 2005, is awarded to the Defendant, which contact shall be exercised in the following manner;

2.3.1 The Defendant shall be entitled to take the child with him every alternate weekend from Friday afternoon 17:00 to Sunday afternoon 17:00.

2.3.2 The Defendant shall also be entitled to have telephonic contact with the child at all reasonable times.

2.3.3 The Defendant shall also be entitled to take the child with him for one short school holiday per year as well as half the July school holidays. As for the December holidays, it will be divided between the parties in such a way that the child spends the first part, which runs from the day that the school closes until the 25th of December, at one party, and the second part from the 26th of December until the 2nd day before the school reopens, with the other party. The said portions of the December holiday shall rotate between the parties annually.

2..4 The access rights set out above shall in no way infringe upon the minor child's scholastic, religious and/or social activities.

2.5 In addition to the above contact with the child, the Defendant is entitled to have contact with the child in such manner and at such times as agreed with the Plaintiff in advance.

2.6 Both parties retain the parental responsibilities and rights with regard to guardianship of the child as provided for in Section 18(2) of the Children's Act, No. 38 of 2005.

2.7 The parties place on record their intention to act in the best interest of the child at all times and to promote a healthy relationship between her and both parties.

2.8 The parties confirm that considering the age of the child, they will explain to her what contact rights entail as provided by Section 6(5) of the Children's Act. The parties confirm that the child has accepted the arrangements and is adapting well thereto.

3.

MAINTENANCE FOR THE MINOR CHILD:

3.1 The Plaintiff undertakes to pay any medical expenses of the child and to keep the child registered as a beneficiary on her medical aid.

3.2 The Defendant undertakes to pay the Plaintiff an amount of R3000.00 per month in respect of maintenance for the child.

3.3 The Defendant undertakes to pay the nursery school fees and school fees monthly. The parties shall also be liable for half the cost of the child's school fees, school clothes and stationery.

4.

MAINTENANCE FOR THE PLAINTIFF:

The Defendant does not pay any maintenance to the Plaintiff and the Plaintiff waives her right to claim maintenance from the Defendant.

5.

MOVABLE ASSETS:

The parties have already agreed on the distribution of the assets and each one retains the assets currently in their possession.

6.

DEBTS:

Each party shall be liable to pay the debts incurred in his or her name and remains liable for the monthly obligations for which he or she is currently responsible and irrevocably and unconditionally indemnifies the other party in respect of any liability thereof.

7

COSTS:

Each party pays his or her own legal costs.

SIGNED at PRETORIA on this the 25th day of SEPTEMBER 2013.

AS WITNESSES:

1. *[Signed]*

2. *[Signed]* *[Signed]*

PLAINTIFF

SIGNED at PRETORIA on this the 25th day of SEPTEMBER 2012.

AS WITNESSES:

1. *[Signed]*

2. *[Signed]* *[Signed]*

DEFENDANT

A Translator's Certificate is used when translating court records. The translation is not signed and stamped on each page.

TRANSLATORS' CERTIFICATE

I, the undersigned, hereby certify that the aforegoing is, to the best of my ability, a true and correct translation from Afrikaans into English of selected transcripts in the matter of:

XXX AND 14 OTHERS

versus

XXX AND OTHERS

CASE NO:	XXX/20
DATE COMPLETED:	18 NOVEMBER 2019
NUMBER OF PAGES:	26
NUMBER OF WORDS:	7,667
INSTRUCTED BY:	XXX ATTORNEYS
SWORN TRANSLATOR:	XXX
REGISTRATION NO:	12345/00 (NORTH GAUTENG HIGH COURT)

NOTE: *[Indicate problems experienced with the transcript, if any.]*

REPUBLIC OF SOUTH AFRICA
DEPARTMENT OF LABOUR



[Official coat of arms of the Republic of South Africa.]

CENTRAL ORGANISATION FOR TRADE TESTING

•

TRADE TEST REPORT

•

Name DOE J

Designated Trade ELECTROMECHANICIAN (MILLWRIGHT)

Identity No. XXX

Act No.

Reference:	Serial No.	Contract No.	Inspectorate
	9/X/2853	9/07/11420	JOHANNESBURG

TESTED AT: OLIFANTSFONTEIN LAST DAY OF TEST: 1996.05.24

INDUSTRY: METAL	F.V.T.		P.V.T.	F.C.T.	A.A.	MODULAR
			X			

No.		TASK	Possible	Obtained	%	Symbol
1		Fault Finding	1080	678	63	C
2		Panel Wiring	300	251	84	A
3		Basic Hand Tools	200	144	72	B
4		Basic Electronics	200	190	95	A
5		Applied Hydraulics	200	105	53	D
6		Shaft Alignment	100	79	79	B
7		Testing of Circuits	100	85	85	A
FINAL ASSESSMENT:		PASS	2180	1532	70	B

SYMBOLS: **A=80-100%** **B=70-79%** **C=60-69%.....(PASS)**
D=50-59% E=40-49% F=30-39% G=Lower.....**(FAIL)**

[Signed]
For DIRECTOR-GENERAL: LABOUR

1996.05.28
DATE

EDP

TRADE CERTIFICATE

Man. 694 (A)

[Official coat of arms of the Republic of South Africa.]



REPUBLIC OF SOUTH AFRICA — DEPARTMENT OF MANPOWER

Manpower Training Act, 1981
(Regulation 16)

Certificate

It is hereby certified that

XXX

identity document number XXX

has passed a qualifying test in the trade/occupation of

ELECTRICIAN

in accordance with standards recognised by the National Training Board in terms of section 13(12) *of the Manpower Training Act, 1981.*

[Signed]

for Registrar of Manpower Training

Number E 111

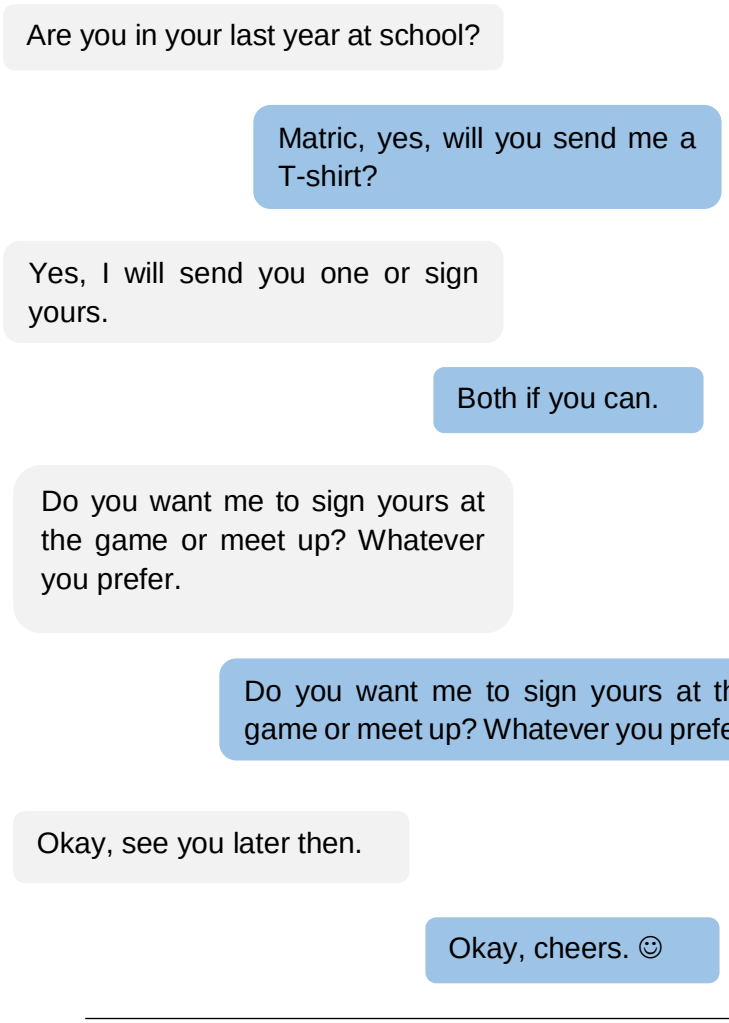
Date tested 6.8.1985

Date of issue 27.8.1985

[Official red seal of the Department of Manpower.]

G.P.-S.

WhatsApp messages must closely resemble the original.
Messages do not have to be in different colours, but it must be easy to distinguish between the different parties.



COURT LAYOUT, unless instructed otherwise: (Always find out how they want it.)

JANE: Are you in your last year at school?

JOHN: Matric, yes, will you send me a T-shirt?

JANE: Yes, I will send you one or sign yours.

JOHN: Both if you can.

JANE: Do you want me to sign yours at the game or meet up? Whatever you prefer.

JOHN: Okay, see you later then.

JANE: Okay, cheers. ☺

LAST WILL AND TESTAMENT

We, **JOHN DOE** (**ID NO: XXX**) and **JANE ANNE DOE** (**ID NO: XXX**) married out of community of property, hereby revoke all wills, codicils and other testamentary writings previously made by us, jointly or severally, and declare this to be our will and testament.

1

It is our wish that mortal remains be buried.

2

The first-dying of us bequeath his/her estate to the SURVIVOR of us.

3

Should we, however, die simultaneously or within 30 (Thirty) days of each other, then the bequest above falls away and we bequeath our respective estates as follows:

3.1 50% (Fifty Percent) to our son, JOHNNY DOE (Born 16 August 1983).

3.2 50% (Fifty Percent) to our daughter, JANINE DOE (Born 7 September 1986).

3.3 The inheritance of a child not surviving the survivor of us, shall devolve upon his/her issue by representation, per stirpes, or in the absence of issue, upon our remaining child or his/her issue by representation, per stirpes.

4

If the survivor of us survives the first-dying by more than 30 (Thirty) days and dies without leaving a valid will, then the surviving spouse bequeaths his/her estate as set out in clause 3 above.

5

The bequests to beneficiaries who have not reached the age of 18 (Eighteen years), shall be held in trust by the Trustee appointed herein to administer in separate trusts and who has been vested with the powers and duties hereinafter set forth:

5.1 To accept, control and administer assets in the best interest of the trust in the discretion of the Trustee. Without limiting the generality and total comprehensiveness of these powers, it will include the power to let, sell or convert assets into cash, to lease, buy or improve movable and immovable property, or to borrow money and pledge or mortgage assets of the trust as security.

5.2 To invest cash, the proceeds of assets realised and surplus income, for the benefit of the trust, in any manner and to call up and reinvest such investments, as the Trustee may deem fit in his discretion.

5.3 To, in his sole discretion, provide out of the trust income for the maintenance, education and general benefit of the beneficiaries concerned and for all expenses, obligations and costs in relation to the trust assets and any business ventures which may be conducted and also for necessary and useful improvements, interest and capital repayments on outstanding loans, payment of debts and income and other taxes and, if the income is insufficient, to pay the shortfall from capital and to capitalise any income not utilised for the abovementioned purposes for the benefit of the beneficiaries concerned.

2.4 To transfer, deliver and pay over the trust assets to the beneficiaries, when they respectively reach the age of 18 (Eighteen) years, and to terminate the relevant trust.

6

We authorise and direct that the Trustees of any Pension Fund and/or Provident Fund as well as any supplementary schemes (including Group Life Assurance Schemes), may pay all benefits that are payable as a result of our deaths by these schemes, to any beneficiary, to the Trustee of the trust created in terms of this will. Our Trustee shall then accept same and administer it in terms of the conditions stipulated in this will, for the benefit of the beneficiary concerned.

7

Notwithstanding preceding stipulations, the Executor and/or Trustee in their sole discretion, are hereby authorised to transfer any asset in which a beneficiary may have a vested right under this will, but who has not reached the age as stipulated in the trust clauses, in the case of immovable property, to such beneficiary and to, in the case of movables and cash, hand over any asset to the guardian of such beneficiary, if a minor, and to the beneficiary himself, if already a major. The receipt of such guardian, who shall not be required to furnish security, or of the beneficiary himself, if already a major, shall be sufficient discharge to the Executor and/or Trustee.

8

We direct that should our heirs (minors assisted by their guardians) decide to jointly retain any assets, we authorise our heirs to form a Private Company and/or an Inter Vivos Trust in order to achieve joint retention and our Executor and/or Trustee shall then be allowed to transfer such assets as indicated by our heirs, to the relevant Private Company and/or Inter Vivos Trust as formed by our heirs, as if it had been bequeathed as such in the first place.

9

We direct that our beneficiaries will not be required to collate any donations made to them during our lifetime.

10

We direct that the inheritance devolving upon any beneficiary under this will or a later codicil, as well as the proceeds, the reinvestment of such proceeds, and the income thereon shall be free of

the legal effect, including any accrual system, of any present or future marriage of such beneficiary and shall in all circumstances be protected against the creditors of such beneficiary's spouse.

11

We appoint XXX to be the Executor of the estate of the first-dying of us and of our respective estates, should we die simultaneously, and of the survivor of us. We appoint XXX as the Trustee of the trust(s) created herein, with power of assumption. We direct the Master of the High Court to dispense with security by the said Trust Company and its assumed trustees for the proper performance of his/her duties in both capacities. The Executor and Trustee will be entitled to invest with and to make use of the other services of XXX and its subsidiaries and associated companies, who may charge their usual fees for such services.

SIGNED at JOHANNESBURG on this 27 day of FEBRUARY 2019. in the presence of the undersigned two witnesses who both signed in our presence and in the presence of each other. *[Handwritten place and date]*

AS WITNESSES

1. *[Signed]* _____ *[Signed]* _____
TESTATOR

2. *[Signed]* _____ *[Signed]* _____
TESTATRIX

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